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MASTER AGREEMENT

between

**MIDDLETOWN CITY SCHOOL DISTRICT
BOARD OF EDUCATION**

and

MIDDLETOWN TEACHERS ASSOCIATION

Effective July 1, 2020 through June 30, 2023

(Amended: Dec. 2021)

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TABLE OF CONTENTS

<u>Article #</u>	<u>Item(s)</u>	<u>Page#</u>
<u>GOVERNING PROVISIONS</u>		
ARTICLE 1.	RECOGNITION	1
ARTICLE 2.	DEFINITIONS.....	2
ARTICLE 3.	MANAGEMENT RIGHTS	3
ARTICLE 4.	ASSOCIATION RIGHTS	4
ARTICLE 5.	DISTRICT COMMITTEES	6
ARTICLE 6.	NEGOTIATIONS PROCEDURES.....	9
ARTICLE 7.	GRIEVANCE PROCEDURES	12
<u>WORKING CONDITIONS</u>		
ARTICLE 8.	TEACHER CONTRACTS	15
ARTICLE 9.	AFFIRMATIVE ACTION	17
ARTICLE 10.	REDUCTION IN FORCE	17
ARTICLE 11.	ASSIGNMENT AND TRANSFER.....	19
ARTICLE 12.	DISCIPLINE AND TERMINATION	22
ARTICLE 13.	PERSONNEL FILE.....	24
ARTICLE 14.	EVALUATION	25
ARTICLE 15.	SUBSTITUTE TEACHERS.....	27
ARTICLE 16.	TUTORS.....	29

ARTICLE 17.	RESIDENT EDUCATORS	30
ARTICLE 18.	REHIRED RETIRED TEACHERS.....	30
ARTICLE 19.	PLANNING PERIOD/TEACHER PREPS/DUTIES	31
ARTICLE 20.	FACULTY MEETINGS	33
ARTICLE 21.	SCHOOL DAY	33
ARTICLE 22.	SCHOOL YEAR.....	34
ARTICLE 23.	WORKROOM/LOUNGE.....	34
ARTICLE 24.	BUILDING PROCEDURES	35
ARTICLE 25.	CLASS SIZE.....	35
ARTICLE 26.	PROTECTION OF TEACHING STAFF	37

LEAVES OF ABSENCE

ARTICLE 27.	SICK LEAVE	39
ARTICLE 28.	PERSONAL LEAVE.....	41
ARTICLE 29.	PROFESSIONAL LEAVE	42
ARTICLE 30.	ASSOCIATION LEAVE.....	42
ARTICLE 31.	EMERGENCY LEAVE	43
ARTICLE 32.	WORKERS COMPENSATION.....	43
ARTICLE 33.	SABBATICAL LEAVE	44
ARTICLE 34.	UNPAID MEDICAL LEAVE	44
ARTICLE 35.	CHILD CARE LEAVE	45
ARTICLE 36.	MILITARY LEAVE.....	46

ARTICLE 37.	PROFESSIONAL ORGANIZATION LEAVE.....	46
ARTICLE 38.	COMPULSORY LEAVE	46
ARTICLE 39.	OTHER LEAVES.....	46

COMPENSATION

ARTICLE 40.	ADMINISTRATION OF THE SALARY SCHEDULE	47
ARTICLE 41.	SUPPLEMENTAL CONTRACTS.....	50
ARTICLE 42.	INSURANCE.....	52
ARTICLE 43.	TUITION REIMBURSEMENT	54
ARTICLE 44.	SEVERANCE PAY	55
ARTICLE 45.	CALAMITY DAYS	56
ARTICLE 46.	DURATION.....	55

APPENDICES:

APPENDIX A	SALARY SCHEDULES.....	56
APPENDIX B	TUTOR SALARY SCHEDULES	57
APPENDIX C	SUPPLEMENTAL SCHEDULES.....	60
APPENDIX D	TEACHER EVALUATION GUIDELINES AND FORMS.....	61
APPENDIX E	EMERGENCY LEAVE FUND (ELF).....	67

MIDDLETOWN BOARD OF EDUCATION

and

MIDDLETOWN TEACHERS ASSOCIATION

PROFESSIONAL NEGOTIATIONS CONTRACT

THIS CONTRACT made and concluded at Middletown, Ohio, this date by and between the Middletown Teachers Association, hereinafter referred to as the MTA and the Middletown City School District Board of Education, hereinafter referred to as the Board, and jointly referred to hereinafter as the parties hereto.

The parties hereto believe that the welfare of the children of the Middletown City School District is paramount in the operation of the schools of the district and to this end both parties will endeavor to promote same.

The parties hereto believe that the interest of the education system is best served when mutual understanding, cooperation and communication exist among the Board, the Administration, and the MTA.

GOVERNING PROVISIONS

ARTICLE 1.

RECOGNITION

- 1.1 The Board recognizes the M.T.A. an affiliate of the Ohio Education Association and the National Education Association as the sole and exclusive bargaining agent for the purpose of bargaining wages, hours, benefits and other terms and conditions of employment for the professional teaching staff in the bargaining unit. The bargaining unit consists of all full and regular part-time certificated classroom teachers, special education teachers, all certificated therapists (P.T. and O.T.), tutors (small group instructors), librarians, counselors, and speech therapists provided that these individuals work on a substantial and regular basis, more than seventeen and one-half hours per week, every week of the school year or a total of 120 school days during the regular school year for the Middletown City School District; but excluding the Superintendent, Assistant Superintendent, all Administrative Assistants, Directors, Coordinators, Principals, Assistant Principals, School Psychologists, Head Counselors, Adult Education Instructors and Adult Vocational Education Instructors hired after July 1, 1986, other Administrative or Supervisory personnel and all other employees and substitute teachers except those substitute teachers

assigned to one specific teaching position for sixty (60) consecutive school days or one hundred and twenty (120) school days in the Middletown City School District in any combination of assignments during a single school year. Such substitute teachers, subject to continued satisfactory performance, shall remain in the bargaining unit until the return to duty of the teacher whose position the substitute has been assigned to or the end of the school year, whichever event occurs first.

- 1.2 Whenever the word "teacher" or "employee" is used in this Agreement it shall be deemed to mean the employees in the bargaining unit covered by this Agreement, as defined in Article 1, paragraph 1.1 hereof.
- 1.3 Other Administrative and Supervisory personnel includes any certificated or professional employee having the authority to responsibly direct other employees and/or the authority to hire, transfer, assign, promote, discharge, reward, discipline or effectively recommend such action as defined in O.R.C. Sections 3319.01 or 3319.02.

ARTICLE 2.

DEFINITIONS

- 2.1 "Teacher" refers to certificated professional teaching staff as included in Article 1, Section 1.1.
- 2.2 "Days" as used in this Agreement shall be defined as Monday through Friday, when the district office is open, exclusive of winter and spring break.
- 2.3 "Association" or "MTA" means the Middletown Teachers Association.
- 2.4 "Board", "Board of Education" or "Employer" means the Board of the Middletown City School District.
- 2.5 Unless otherwise provided herein, the "school year" shall be defined as the time period July 1 through June 30.
- 2.6 For purposes of this Agreement, seniority will be defined as the length of continuous employment for the Middletown City School District Board of Education as verified by official Board minutes.

ARTICLE 3.

MANAGEMENT RIGHTS

- 3.1 Except as otherwise specifically provided in this Agreement, the Board hereby retains and reserves all powers, rights, authority, duties and responsibilities conferred upon and vested in the Board or its Superintendent by the laws and the Constitution of the State of Ohio including, but not limited to, their exclusive right and responsibility:
- A. to determine matters of inherent managerial policy which include, but are not limited to, areas of discretion or policy such as the functions and programs of the Employer, standards of services, its overall budget, utilization of technology, and organizational structure;
 - B. to direct, supervise, assign, reassign, schedule, evaluate, hire, discipline, suspend, demote, discharge, reprimand, layoff, transfer, promote, or retain employees;
 - C. to maintain and improve the efficiency and effectiveness of the Employer's operations;
 - D. to determine the overall methods, process, means, or personnel, internal and external, by which the Employer's operations are to be conducted, the location, type, and number of physical facilities, equipment, programs, and the work to be performed;
 - E. to determine the size, composition, and adequacy of the work force, as well as to make, amend, and enforce work rules, regulations, standard operating policies, and procedures;
 - F. to determine the overall mission of the Employer as a unit of government;
 - G. to effectively manage the work force;
 - H. to determine the hours of work and work schedules;
 - I. to determine the duties to be included in all job classifications;
 - J. to take actions to carry out the mission of the Employer as a governmental unit.
- 3.2 It is agreed that the above listing of management rights shall not be deemed to exclude other proper functions not specifically listed herein or traditionally exercised by the Employer.

- 3.3 The management rights set forth above shall not be subject to arbitration or impairment by an arbitration award or otherwise except to the extent that such rights are specifically limited by an express provision of this Agreement. Failure to exercise a right or exercising it in a particular manner shall not be deemed a waiver of any management right or prerogative.
- 3.4 The District agrees that conditions of employment relating to wages, hours of work and other significant and material terms and conditions of employment not expressly covered by this Agreement which are mandatory subjects of bargaining as defined by law may not be changed by the District unless the Association is first given notice of the proposed change and an opportunity to bargain regarding the proposed decision and/or the effects of such a decision on bargaining unit employees as that bargaining obligation is defined by law.

ARTICLE 4.

ASSOCIATION RIGHTS

- 4.1 Association Representatives
 - A. The President of the MTA or his/her designated representative, shall be allowed to visit schools before or after school hours to discuss problems or grievances that individual teachers may have. During the school day, the MTA president or his/her designee shall be allowed to visit schools as approved by the Superintendent or designee. MTA representatives must follow building sign in procedures upon arrival.
 - B. The President of the MTA or his/her designated representative, shall have a seat at a table near the one occupied by the Board during official meetings of the Board of Education. The President may be asked to comment on items under consideration which concern teachers. The President shall receive a complete copy of the Board agenda, plus addenda, and minutes of all Board meetings.
 - C. Faculty representatives to the MTA executive committee and building representatives shall be excused from administratively scheduled meetings to attend scheduled monthly meetings of the MTA. Such regular after school monthly meeting dates shall be on the second and third Tuesday of each month. Teacher based team meetings are not administratively scheduled meetings.
- 4.2 Registration and Payroll Deductions for Professional Organizations
 - A. The names and addresses of newly employed personnel eligible for membership in the MTA shall be made available to the MTA following Board approval of the

contracts. A copy of the current Master Contract shall be made available to employees through the District website.

- B. An MTA member, upon his/her written request, shall be given the right of payroll deduction of combined dues for the MTA and its affiliates without cost to the Association or the individual involved.
- C. The MTA is to assume clerical responsibility for registration for membership of professional organizations for all "Professional teaching staff" eligible for membership in the MTA.
- D. The MTA faculty representatives shall be allowed appropriate time during the new teacher orientation for instruction regarding registration and enrollment.
- E. Association membership is annual with the membership year being September 1 through August 31. Once a member enrolls, such membership shall be continuous thereafter for each subsequent membership year unless the individual cancels membership. An employee may cancel membership by proper written notice to the Association President between August 1 and August 31 of any year.
- F. The MTA agrees that it will indemnify and hold the Board harmless from and recovery of damages and expenses sustained by reason of any action taken under this Article.

4.3 Fair Share Fee

The parties agree that if the relevant provisions of Janus v. AFSCME Council 31 are overturned, the parties will meet to negotiate Fair Share Fee provisions that are consistent with the changes in law.

4.4 Facility Usage

- A. The MTA officers and faculty representatives shall have the right to insert materials pertaining to the MTA in teachers' mailboxes and to send such materials through the interschool mail system and/or through email. It is understood and agreed that such materials will not promote or give notice of illegal or unlawful acts.
- B. The MTA officers and faculty representatives shall have the privilege of using space on bulletin boards in each building teacher lounge(s) for MTA business. The display of materials of any inflammatory or slanderous nature shall be prohibited. It is understood and agreed that such materials will not promote or give notice of illegal or unlawful acts.

- C. The MTA shall have the right to use school facilities in accordance with Board policy. Any associated fees will be waived.

ARTICLE 5.

DISTRICT COMMITTEES

5.1 Faculty Advisory Committee

- A. There shall be a Faculty Advisory Committee established in each building, which shall be chaired by a MTA Building Representative as appointed by the MTA President.
- B. The Faculty Advisory Committee shall be composed of the building principal and/or assistant principal, and MTA building representatives elected for that building in a ratio of one (1) MTA representative for each ten (10) teachers, or fraction thereof, provided that in each building the MTA shall be entitled to a minimum of two (2) MTA representatives.
- C. The building chairperson and the building principal shall evaluate the structure of the committee and jointly determine whether additional members need to be added to provide adequate representation of the staff. They shall then take these recommendations back to the Faculty Advisory Committee for their approval. Membership may be granted to other faculty members by the committee on a permanent or temporary basis for the school year. They may also from time to time, when necessary, appoint a member or members of the building staff who are not members of the committee for particular project studies.
- D. The intent of the committee is to improve communications between staff and administration in regard to building problems and programs.
- E. The Faculty Advisor Committee shall meet at least once a month during the school year to discuss matters of common interest in the building, such as scheduling the teachers' preparation period, maintenance, supplies, etc. Meetings shall be cancelled if neither party has items for the agenda. A schedule of regular meetings shall be established and an agenda of matters to be considered at the regular meetings shall be distributed to the building staff at least twenty-four (24) hours before any regular meeting. Special meetings may be scheduled when necessary.
- F. Minutes of all meetings shall be kept and made available to the building staff, the MTA, the Superintendent, and the Director of Human Resources. All meetings are to be open so that any teacher or administrator can attend as an observer.

- G. At the beginning of each year the FAC and building principal shall prepare a mutually acceptable plan such that every teacher shall have their scheduled planning time.

5.2 Labor Management Committee

- A. In an effort to further a good working relationship between the parties, a labor management committee shall be formed to investigate, study and discuss solutions to mutual problems affecting labor relations.
- B. The LMC committee will consist of five (5) representatives from each party as selected by the Superintendent and MTA President. With notification to the other party, additional representatives may be called on to speak to a specific topic on the agenda as needed.
- C. The parties reserve the right to invite their Association Representative or Legal Counsel to meetings where Agenda items have bearing upon matters that relate to collective bargaining or potentially grievable items or where otherwise deemed necessary upon written notice to the other party.
- D. The Superintendent and MTA President will serve as co-chairpersons of the committee.
- E. One member appointed by the co-chairpersons will serve as secretary and prepare minutes of the meeting. Before distribution, both parties shall review the minutes. Copies will be provided to all administrators, Board members and Association representatives.
- F. The chairpersons shall recognize any consensus of the parties to table a topic.
- G. Meeting Schedule and Agenda
 - 1. Meetings will be held as needed by the parties. An agenda shall be submitted at least 48 hours prior to the meeting to both parties. The intent is for each side to come to the meeting as well prepared as possible.
 - 2. A specific day and time shall be agreed to for future meetings. Every attempt shall be made to keep such a schedule, realizing that some flexibility is necessary.
 - 3. Except in emergencies, topics not on the agenda shall not be discussed but placed on the following meeting's agenda. The agenda shall include a brief

description of each item to be discussed. Emergency items may be added to the agenda by mutual consent.

H. General Guidelines

1. It is recognized that recommendations growing out of these meetings are not binding.
2. Topics that could lead to grievances may be discussed.
3. Each person wishing to speak shall be recognized by the facilitator before speaking, subject to the rules of order adopted by the parties to govern the conduct of meetings.
4. The co-chairpersons shall recognize a consensus to table a topic for further study.
5. Each topic shall be discussed fully before proceeding to another topic. Topics requiring further study may be tabled. Where mutually satisfactory decisions are not reached, the topic shall be cancelled, reverting to its proper place in the labor management relationship - for instance, grievance procedure, negotiations, etc.
6. There will be mutual agreement on any news releases.

5.3 Local Professional Development Committee

A Local Professional Development Committee ("LPDC") shall be established following the "LPDC Handbook" as amended from time to time by the LPDC Committee.

A single step supplemental will be created for payment in the spring of each year as follows:

1. \$500 for members and \$750 for the LPDC committee chair and secretary.
2. The LPDC committee will have up to three days of release time and up to 30 hours of non-released time to complete their work. Additional release time may be granted by the HR director as needed. Time outside the workday, beyond the 30 hours, will be paid at the district hourly rate to a maximum of 10 additional hours.

ARTICLE 6.

NEGOTIATIONS PROCEDURES

6.1 Composition of Negotiating Teams

- A. The MTA shall be represented by not more than five (5) persons of the MTA and designated by the MTA for this purpose. A chairperson shall be designated in advance.
- B. The Board of Education shall be represented by not more than five (5) persons approved by the Board of Education, upon recommendation of the Superintendent. A chairperson shall be designated in advance. These persons shall not be members of the MTA or professional personnel represented by the MTA.
- C. A quorum, consisting of two teams of two members each, shall be present before each negotiation's session is begun.
- D. The membership of a negotiating team should be determined at the beginning of a series of bargaining sessions and should, as far as possible, remain the same throughout the sessions.
- E. Each team shall be empowered to make proposals and counterproposals and come to tentative agreements on behalf of its respective party.
- F. Members of the negotiating teams, as professional individuals, shall be expected to voice their opinions openly and freely in a cooperative attempt to reach equitable decisions. No sanctions or reprisals of any kind shall be taken by either the MTA or the Board of Education against the other party by reason of participation in negotiations.

6.2 Requests for Negotiations

The master contract negotiations shall be reopened 120 days prior to the expiration date. A request for calling a meeting of the negotiation teams can be made by the Association or the Board of Education. The meetings shall be held in mutually acceptable surroundings and placed on the calendar, not more than fifteen (15) days after the initial request to open negotiations.

6.3 Meeting

- A. After each party introduces its initial proposals, no new issues shall be added for negotiation without the consent of both teams.
- B. Negotiation meetings shall be scheduled to interfere least with school schedules; however, if necessary, members of the negotiation teams may be reassigned from school duties to attend these meetings.
- C. Until all negotiation meetings are completed, each meeting shall include a decision on an agreed time, date and place for the next meeting.

6.4 Conduct of Meeting

- A. Representatives of the news media shall not be permitted to attend a negotiation session. Any press releases during negotiations must be agreed upon by both negotiating teams.
- B. Upon the request of either party, any negotiation meeting shall be recessed to permit the parties to caucus.
- C. As items receive tentative agreement, they shall be reduced to writing and initialed by each party. Such initialing shall be considered a final agreement on that item, unless both parties mutually agree to modify the tentative agreement. Any items not agreed upon shall follow the impasse procedures outlined below.

6.5 Agreement

- A. The completed negotiated agreement shall be reduced to writing and submitted to the MTA and Board for final approval and ratification by the membership of the Association and of the Board of Education.
- B. Upon ratification by both parties, the agreement shall be reviewed by both parties for accuracy, and following the submission of the final proofed document, signed by the Superintendent and by the President of the Board of Education and the president of the MTA and the members of the negotiations teams.
- C. The agreement, as ratified by both parties, shall be entered into the official minutes of the Board of Education at the time of ratification and shall go into effect immediately unless a specified date is indicated as the effective date for a negotiated time.

6.6 Impasse

- A. If the negotiating teams are unable to negotiate the items under negotiation to a satisfactory conclusion within forty-five (45) calendar days from the date of the first negotiations session, unless both negotiation teams extend the time, the matter may be referred to the Federal Mediation and Conciliation Service by either party.
- B. If the parties are unable to reach an agreement within sixty (60) calendar days from the date of the first negotiations session, unless both parties extend the time, the matter shall be referred to a single impartial FACT FINDER under the rules of the American Arbitration Association.
- C. The Fact Finder shall render a decision in writing and make his/her recommendations within thirty (30) days after the impasse hearings. The final recommendations shall be submitted concurrently to the Board and the Association. Upon receipt of the Fact Finder's recommendations the provisions of Ohio Revised Code Section 4117.14, which details the procedures related to the acceptance and rejection of the Report, and the right to strike which procedures shall be adhered to by the parties, except that the Board and the Association shall have fourteen (14) days from the receipt of the Fact Finder's Report to accept or reject the Report and serve notice of such action on the State Employment Relations Board.
- D. Each party shall bear the expense of its own witnesses, the production of its evidence and the presentation of its case. The cost for the services of the AAA arbitrator, including per diem expenses, if any, and the actual and necessary travel and subsistence expenses shall be borne equally by the Board and the MTA.

6.7 Contrary to Law

- A. If any provision of this Contract shall be found to be contrary to law by a Court of competent jurisdiction, then that provision shall be deemed invalid except to the extent permitted by law, but all other provisions hereof shall continue in full force and effect for the term of the Contract.
- B. Any section of this Contract found to be invalid, pursuant to Section A above shall be renegotiated. Negotiations on such Section only shall commence within fifteen (15) days of the determination that the provision is invalid. Negotiations shall be in conformance to the procedures set forth above.

6.8 The parties acknowledge that during the negotiations that resulted in this agreement, each party had the unlimited right and opportunity to make demands and proposals, and that the understandings and agreements arrived at by the parties after the exercise of that right and

opportunity are set forth in this agreement, and this agreement embodies all applicable provisions relating to employees covered. Therefore, the employer and the union, for the term of this agreement, each agree that the other shall not be obligated to negotiate with respect to any item covered by this agreement. The employer and the union may, however, mutually agree to alter, amend, supplement, enlarge or modify the provisions of this agreement only by a written agreement or letter of understanding.

- 6.9 The parties agree that this agreement will be the sole and exclusive recourse available to employees and the parties hereto and, where provisions of this agreement conflict with otherwise applicable provisions of Ohio law, this agreement shall prevail pursuant to Ohio Revised Code, Section 4117.10(A).

ARTICLE 7.

GRIEVANCE PROCEDURES

7.1 Definitions

- A. A "grievance" shall be described as a dispute or complaint arising between the parties hereto under or out of this Agreement or the interpretation, application, performance, termination or any alleged breach thereof. A grievance shall be submitted through the prescribed form which shall be available on the District's intranet website.
- B. The grievant shall mean the party filing the grievance and may be a teacher or teachers covered by this Agreement or the MTA.
- C. The term days shall be used as defined in Article 2.2.

7.2 Statement of Basic Principles

- A. Every teacher who so requests shall be represented by the MTA in the grievance procedure. The teacher shall be present at any grievance discussion. When the presence of a teacher at a grievance hearing is requested by either party, illness or other incapacity of the teacher shall be grounds for any necessary extension of grievance procedure time limits. The failure of the grievant to act on any grievance with the prescribed time limits will act as a bar to any further appeal. The time limits, however, may be extended by mutual agreement.
- B. A teacher who participates in these grievance procedures shall not be subject to discipline or reprisal because of such participation. A copy of the grievance shall not be filed in the teacher's personnel folder.

- C. Hearings and conferences under this procedure shall be conducted at a time and place which will afford a fair and reasonable opportunity for all persons, including witnesses entitled to be present to attend and will be held, insofar as possible, after regular school hours, or during non-teaching time of personnel involved. When such hearings and conferences are held at the option of the administration during school hours, all employees whose presence is required shall be excused, with pay, for that purpose. Arbitration hearings, however, shall be held during regular working hours unless scheduled otherwise by the arbitrator.
- D. All notices of hearings and dispositions of grievances shall be either mailed, emailed, or hand delivered with the date of mailing or postmark and date of receipt recorded thereon. Written grievances and appeals shall be deemed to have been received one (1) day after postmarked: if hand delivered, the date received and initials of the recipient shall be recorded thereon.
- E. It is important that a grievance be processed as rapidly as possible. The number of days indicated at each level shall be considered as a maximum, and every effort shall be made to expedite the process. The time limit specified may be extended by mutual agreement.
- F. All grievances may be withdrawn at any level without prejudice. In the case of grievances filed by individuals, the teacher involved has the right to withdraw the grievance at any time.

7.3 Procedure

- A. Level One - A grievance lodged with the principal or the appropriate administrator must be within thirty (30) days after the grievant could reasonably be assumed to have known of the event or action giving rise to the alleged grievance. The grievance conference shall occur within ten (10) days after the grievance is filed. The grievant shall be accompanied by the local MTA building representative or any other MTA personnel of the grievant's choosing. The principal or appropriate administrator shall file his/her decision within ten (10) days after the Level One conference or, if the principal/administrator fails to answer, the grievance shall automatically proceed to the next step.
- B. Level Two - In the event a grievance has not been satisfactorily resolved at Level One, the MTA may file, within ten (10) days of the principal's or the appropriate administrator's written decision at Level One, a copy of the grievance with the Superintendent within ten (10) days after such written grievance is filed, the grievant, the MTA and the Superintendent or designee shall meet to attempt to resolve the grievance. The Superintendent or designee shall file his/her decision

within ten (10) days of the Level Two hearing and communicate it to the grievant and the MTA or, if the Superintendent or designee fails to answer, the grievance will automatically proceed to Level Three.

- C. Level Three - If the grievance has not been satisfactorily resolved at Level Two, the MTA may within ten (10) days of the Level Two decision, demand arbitration under the Voluntary Arbitration Rules of the Arbitration and Mediation Association (“AMS”) of Cincinnati, Ohio, by direct written demand therefore and a list of twelve (12) arbitrators to the AMS, with a copy of said notice to the other party. The arbitrator shall be appointed in accordance with AMS rules according to the strike and rank method.
- D. The cost for the services of the arbitrator, including per diem expenses, if any, and the actual and necessary travel and subsistence expenses shall be shared equally by the Board and the MTA.
- E. When issued in accordance with these procedures, the opinion and award of the arbitrator shall be final and binding to all parties. The arbitrator shall not have the power to add to, or subtract from, or modify this contract.

WORKING CONDITIONS

ARTICLE 8.

TEACHER CONTRACTS

8.1 Limited Contracts

All limited contracts shall be offered for a term of one (1) year. Teachers hired during the school year to fill vacancies may be offered contracts for the remainder of the school year.

8.2 Probationary Non-Renewal

Notwithstanding any other provision in this Agreement, or State law including ORC Sections 3319.16, 3319.11 and 3319.111, prior to June 1 of any of a limited contract teacher's first two years of service in the District, as defined by the Board adopted school calendar, any such limited contract teacher may be notified of the Superintendent's intent to recommend the teacher be non-renewed. The non-renewal shall not be subject to the grievance and arbitration procedures of this Agreement or any other appeal or hearing procedures provided by State law. Prior to the non-renewal, however, the probationary employee shall be given the reason(s) for the proposed non-renewal, in writing, at which time the employee may request a meeting with the Human Resources Director and is allowed representation by an MTA representative. For first year probationary employees, the parties may discuss the possibility of a different assignment for the second year of the probationary period in lieu of non-renewal. For purposes of this paragraph, a newly hired limited contract teacher includes individuals who have previously served the District as part-time tutors or substitute teachers. The parties may, by written consent, extend the probationary period herein for one additional school year. At the District's discretion, the probationary period may be extended for one additional school year for any employee who takes a leave of absence for longer than sixty (60) school days.

In addition, the District may unconditionally release any newly hired teacher within forty-five (45) calendar days after they first report to work. This action may not be grieved or appealed in any other manner.

8.3 Conditions of Employment for Newly Hired Limited Contract Teachers

Newly hired, limited contract teachers will during their first two years of employment, be scheduled and paid up to four (4) additional days to be served before or after the 185 day school calendar. An employee's attendance at these additional days is a condition of continued employment. Pay for the additional training will be at the district hourly rate.

8.4 Continuing Contract

No later than September 15 of each school year, the District shall notify all teachers that those who achieve eligibility for continuing contract status must file an application form with the Superintendent or designee no later than September 30 in the school year in which they will qualify for a continuing contract. The teacher must satisfy all qualifications of the continuing contract by the date of the last scheduled Board meeting in May in order to receive continuing contract status for the following school year. In addition, to attain continuing contract status, the teacher must demonstrate sufficient effort to be readily available to allow for the administration to complete the evaluation procedures set forth in the attached Memorandum of Understanding, be recommended by the Superintendent, and be approved by the Board of Education by June 1 of the year in which continuing contract eligibility has been achieved. If the teacher is not recommended, the teacher may be granted a 1-year extended limited contract or be non-renewed. If the Board fails to take appropriate action regarding the attainment of the continuing contract by June 1, then the contract status will be governed by Ohio law.

8.5 Non-Renewal of Limited Contracts

A. Basis for Non-Renewal

Non-Renewal of a teacher's limited contract shall be in accordance with the provisions of the Ohio Revised Code regarding the non-renewal of limited contracts unless otherwise set forth below.

B. Procedure

1. A teacher whose contract is not being considered for renewal shall be notified in writing on or prior to June 1. Such notice may be personally served or served on the teacher by registered or certified mail, return receipt requested, at the last address given by the Employee to the Employer. The notification shall include the following information:
 - a. The grounds for such non-renewal;
 - b. The right to undertake with his/her representative a complete review of his/her personnel file which shall be in the office of the Director of Human Resources.
2. In cases of non-renewal the affected Employee will be afforded a hearing with the Superintendent or designee prior to Board Action on the issue of non-renewal of the limited contract at which time he or she shall have the right to have an Association representative present.

3. The above contract provisions for non-renewals of limited contracts regarding the subjects of notice, specifications, personnel file review, meetings or hearings and related provisions are exclusive and shall control, replacing and superseding the provisions of O.R.C. Sections 3319.11 or 3319.111.
- 8.6 Following the provisions of ORC Section 3319.15, no teacher shall terminate the teacher's contract after July 10 of any school year or during the school year, prior to the termination of the annual session, without the consent of the Board of Education.
- 8.7 The procedures of this Article, pursuant to O.R.C. Section 4117.10(A), are intended to supersede, where conflicting, the procedures set forth in Sections 3319.08, 3319.11, 3319.111 and 3319.16 or related conflicting sections of the Ohio Revised Code.

ARTICLE 9.

AFFIRMATIVE ACTION

The Association and the Board expressly believe that an affirmative action statement covering ethnic-minority teachers is necessary. The Association and the Board recognize the importance of a racially integrated staff and support affirmative action. The Association and Board further recognize that it is desirable in making assignments to consider the programs of the District and the distribution of teachers by sex and experience as well as race.

ARTICLE 10.

REDUCTION IN FORCE

- 10.1 If, in the sole judgment of the Board, it is determined to make a reduction in force for any reason including, but not limited to the reasons set forth in Section 3319.17 of the Ohio Revised Code, then the following procedures shall be utilized when making the reduction. For purposes of a reduction in force all teacher evaluations shall be deemed comparable.
- 10.2 Reduction Order
 - A. Reductions shall be made through attrition to the extent possible.
 - B. If additional reductions are needed, limited contract teachers shall have their contracts suspended in accordance with seniority within the teaching certification(s) to be affected by the layoff. The employment date will be verified by Board of Education official minutes.

- C. If further reductions are necessary, continuing contract teachers shall have their contracts suspended in accordance with seniority within the teaching classification(s) area affected by the layoff. The employment date will be verified by Board of Education official minutes.

10.3 Seniority

- A. Seniority shall be defined as the length of continuous employment with the Middletown City School District Board of Education with the date of employment as verified by official Board minutes.
- B. Continuous employment as referenced above in Subsection A shall include all time on Board approved leaves of absence, all time on disability retirement to a maximum of five (5) years, and, subject to the recall provisions below, all time that a certificated employee's contract has been suspended provided there is no break in service.
- C. Seniority shall be lost and employment terminated when a certificated employee resigns, retires, accepts gainful employment during an approved leave of absence without the written approval of the Board or is discharged for cause.
- D. When two certificated employees have equal seniority, the employee with the greatest number of years in the Middletown City School District shall receive preference at the time of a reduction in force or at any time when seniority is a critical factor in employment.

10.4 Recall

Employees whose contracts have been suspended shall have rights to recall as follows:

- A. First recall shall be of employees with suspended continuing contracts in order of seniority in the employee's major areas of certifications, then in minor areas of certification.
- B. If vacancies cannot be filled by employees with continuing contracts, then laid off employees with limited contracts, by seniority, shall be eligible, first in major areas of certification, then by minor areas of certification.
- C. The recall list shall be maintained for a period of two (2) years which shall include the time period up to the first student day after the second year of the layoff. Thereafter, an employee on layoff shall lose his/her right to recall.

- D. No new appointments may be made while there are laid off employees available who are certificated to fill vacancies.
- E. If an employee on layoff refuses the position offered by the Human Resources Department for which he/she is qualified, his/her layoff and recall rights shall be terminated.
- F. The Board has fulfilled its responsibility herein by sending a written offer for a job vacancy to an employee on the layoff list by certified mail at the last address left by the employee. Unclaimed, refused or non-deliverable notices as well as failure to respond within ten (10) calendar days from date of mailing shall constitute refusal of the vacancy.

10.5 Reduction in Force Notice

When staff reduction is necessary, the Director of Human Resources shall give written notice of the intent to recommend the suspension of contracts to the employees so affected ten (10) days prior to Board action, and a list of all those affected shall be given to the Association. The Association and Superintendent or designee shall confer on the reasons for such reduction with five (5) days of receipt of notice of the Superintendent's intent to recommend such reduction to the Board.

10.6 RIF Employee Benefits

Employees on layoff shall be permitted to carry group life insurance, dental, vision and group medical and hospitalization insurance for the period the teacher is eligible to be recalled from layoff, provided they pay 100% of the cost of the premiums for such insurance. It shall be the individual's responsibility to see that the monies are paid to the School Board Treasurer by the first day of each month. It is understood that the Board of Education will assume no responsibility for any cancellations of insurance coverage. It is also understood that this arrangement is only valid while the laid-off employee remains unemployed.

ARTICLE 11.

ASSIGNMENT AND TRANSFER

11.1 Assignment and Transfer

- A. The Association and Board recognize the statutory power of the Board to employ and of the Superintendent to assign, reassign, or transfer teachers except as limited by this agreement.

- B. Notwithstanding any other provision of this Article, the initial assignment of new staff shall be at the sole discretion of the Superintendent, after the completion of involuntary transfers. Other assignments, reassignments, or transfers of a classroom teacher shall be in accordance with the remaining terms of this Article as set forth below.
- C. The provisions of this Article are subject to the licensure rules and regulations of the State of Ohio and the requirements of the reauthorization of the ESSA.
- D. Intent Forms: The District shall electronically request that employees submit intent forms by February 1 of each school year to the HR department. Upon request, a copy of the MTA Intent forms shall be provided to the MTA president.

11.2 Reassignment Within Buildings

Beginning January of each school year, building principals may reassign teachers in their building to teach any subject for which the teacher is licensed and highly qualified. The reassignment for grades K-8 shall be within three (3) grade levels above or below their current assignment. The reassignment shall be for the following year. Such reassignments shall not be made for arbitrary or capricious reasons.

11.3 Posting of Vacancies

- A. A vacancy is an opening resulting from the creation of a new position or from the resignation, retirement, termination, or reassignment of an employee which the Board decides to fill.
- B. After building reassignments and involuntary transfers have occurred, remaining open positions shall be internally posted. Vacancies shall be posted for a minimum of five (5) working days. Notice of vacancies shall be posted on the District website.
- C. Vacancies that occur during the school year may be filled with a long term substitute placed at Step 0, the base rate of the salary schedule. The long term substitute shall be considered part of the bargaining unit and subject to the collective bargaining agreement, except that their contract shall automatically expire at the end of the school year. The position shall be considered vacant. If the District wishes to rehire the long term substitute, the employee shall be considered for purposes of this contract, entering his/her second year of continuous service with the District.
- D. Any vacancies that occur during the summer months shall be both internally and externally posted at the same time for a minimum of five (5) working days.

Summer is defined as the time between the day after the last student day and the day before the first student day of the following year. However, if any internal candidates apply, they shall be granted consideration as stated in Article 11.4, Voluntary Transfer, before any outside candidates are hired.

11.4 Voluntary Transfer

- A. Teachers may apply for open positions to the HR Department provided they meet the following requirements:
 - 1. Have not been suspended in the last five (5) years.
 - 2. Not currently on an improvement plan.
 - 3. Have not been voluntarily transferred in the past three (3) years.
- B. Applicants shall meet with a panel consisting of the building administrator and members of the grade level/department associated with the vacant position. Following the meeting, applicants shall be notified within five (5) working days as to their status. Applicants may also withdraw their request following the meeting during the same five (5) day period. Denials for voluntary transfers shall not be arbitrary or capricious. If the position remains open it shall then be posted externally. If no qualified external candidate fills this position, the District shall award the position to one of the internal applicants if they are still interested in the vacancy.
- C. In the event of a successful grievance under this Article, the remedy shall be to place the grievant in the vacancy requested at the beginning of the next school year. The person who has been displaced as a result of a successful grievance shall be given preference in assignment to a similar vacancy elsewhere when available.
- D. Employees shall not have the right to apply for a voluntary transfer during the first three (3) years of employment with the Board. This limitation may be waived by the Director of Human Resources.

11.5 Involuntary Transfer

- A. An involuntary transfer refers to a reassignment or change in teaching position that has not been initiated by the professional staff member.
- B. Following the building reassignments, the District, after reviewing the intent forms, may involuntarily transfer licensed employees to fill a need of the District.

Teachers will not be required to move more than three (3) grade levels in K-8. Such transfers shall not be made for arbitrary or capricious reasons.

- C. In the event it is necessary to reassign an employee who has not requested a reassignment or transfer, the employee will have the opportunity to discuss the reassignment, and the reasons therefore, with the District prior to any transfer.
- D. Teachers shall not be involuntarily transferred two years in a row except for those in District Positions. District Positions are those positions concerning physical education/health, music, art, and special education positions that are not classified as cross-categorized positions.
- E. In the event of a building closure, displaced teachers shall have the right of first placement in other District vacant positions. This does not apply when one building closes and another building opens simultaneously.

11.6 Half-Time Teachers

Half-time teachers may return to full-time status within their area of certification at the beginning of any school year. They shall retain full seniority rights.

In the instance of the reduction of a half-time position in any building and/or department, the half-time person shall have full rights under Section 10.4, Recall, of this contract.

ARTICLE 12.

DISCIPLINE AND TERMINATION

12.1 Statement of Purpose

- A. The Middletown City Board of Education (hereafter referred to as the Board) and the Middletown Teachers Association (hereafter referred to as the MTA) recognize that in the interest of maintaining good morale and in the interest of effective personnel management, fair dismissal rights should be accorded all teachers and should be embodied in every type of contractual agreement subject to this Article.
- B. Except as provided in Article 8, the employment status of any teacher shall not be altered to his/her detriment (suspension, non-renewal of contract, or termination) except for just cause and then not without adequate fair procedures that guarantee to protect both the Board and the teacher.

12.2 Clarification of Terms and Conditions

- A. Termination of a contract shall be defined as the ending of a continuing contract or a limited contract before the expiration time period specified in said contract.
- B. Suspension shall be defined as the removal of a teacher from his or her assigned duties.
- C. It is the intention of the parties that the provisions of this Article shall govern all aspects of notice of suspension, and discipline of employees. All statutory provisions in Chapter 3319 regarding these subjects are hereby waived and superseded as provided by O.R.C. Section 4117.10(A).

12.3 Discipline Procedures

The Board may issue a written reprimand, administrative transfer, a suspension without pay, or termination.

- A. Before a teacher has a written reprimand placed in his/her official personnel file, or before a teacher receives an administrative transfer or suspension without pay:
 - 1. The teacher shall have a pre-disciplinary conference during which time the circumstances shall be explored. At this time the evidence of misconduct or poor performance will be reviewed with the Employee.
 - 2. Prior to the conference, the teacher shall be notified of the purpose of the conference and the right to representation.
- B. If the conference results in discipline, the reasons for the discipline shall be reduced to writing and given to the teacher following the conference. The teacher shall have the right to attach his/her rebuttal to the disciplinary notice.
- C. Disciplinary conferences may be held either at the Administration Building or at the School. The teacher shall receive at least two (2) days' notice of the conference.
- D. The conference shall precede the discipline as stated above except in extreme circumstances where removal from duties may need to precede such conference.
- E. If the conference results in an administrative recommendation of termination, the affected teacher shall have the rights afforded him/her under Section 12.4 below.
- F. As a form of disciplinary action, the Board may, upon recommendation of the Superintendent, suspend a teacher without pay for a period exceeding ten (10) days.

The Superintendent, with or without Board approval, may issue a suspension without pay for up to ten (10) days. However, a teacher may file a grievance challenging a suspension.

12.4 Termination of a Teaching Contract

A. Basis for Termination

The contract of a teacher may be terminated by the Board for good and just cause.

B. Procedure

In addition to the procedures above, the legal procedures the Board must follow in terminating a contract are outlined below:

1. Any teacher who has been notified of intent to dismiss has the right to undertake with his/her representative a complete review of his/her personnel file.
2. Upon receipt of a written notice containing full specifications of the grounds for dismissal, the teacher shall proceed according to the procedure outlined in Article 4 hereof, treating termination as a grievance and begin action through the Grievance Procedure Agreement between the Board and the M.T.A., following the provisions agreed on therein.

ARTICLE 13.

PERSONNEL FILE

- 13.1 Any member of the professional staff shall have the opportunity to read any material which may be considered critical of his/her conduct, service, character or personality before it is placed in his/her official personnel file and shall be dated the date of review. The official personnel file is defined as the file of the Director of Human Resources. There shall be only one personnel file maintained for each employee by the Director of Human Resources. A member shall acknowledge that he/she has read the material by affixing his/her signature to the copy to be filed. His/her signature shall not indicate agreement with the content of the material, but indicates only that the material has been inspected by the member. He/she shall also have the opportunity to reply to such critical material in a written statement to be attached to the filed copy.
- 13.2 Members of the professional staff shall be informed of any complaint by a parent and/or student which is directed toward them, which will become a matter of record.

- 13.3 Anonymous letters or materials shall not be placed in a member's file nor shall they be made a matter of record. Each member shall have the right, upon request, to review the contents of his/her own personnel file in the presence of a member of the Human Resources staff. A representative of the MTA may, at the member's request, accompany said member in such a review.
- 13.4 All material being placed in the personnel file of any member of the professional staff shall be dated on the date it is reviewed by the Human Resources office.
- 13.5 All materials contained in personnel files shall be privileged information and these files shall be closed except as otherwise provided by law. An employee will be notified as soon as possible of a public records request to see or copy his or her personnel file.
- 13.6 A staff member shall be entitled to a copy, at their cost, of any material in his/her file except material originally supplied to the District as confidential prior to employment.
- 13.7 The contents of the official personnel file for each employee shall be limited to items relating to work performance, discipline, and routine financial or personnel data.

ARTICLE 14.

EVALUATION

- 14.1 Evaluations
 - A. All teachers hired by the Board shall be informed as to the evaluation criteria to be used in determining their reemployment.
 - B. Each teacher shall, pursuant to current evaluation procedures, be provided definite, positive assistance to correct professional difficulties and time to incorporate the recommended changes.

The evaluation procedure for the "Professional Teaching Staff" is attached as Appendix D.
- 14.2 No complaints against professional staff will be used in the evaluation process unless previously discussed with the employee and made a matter of record. Matter of record means that there is evidence that the teacher had knowledge of the issue.
- 14.3 Observations resulting in identification of performance deficiencies shall be followed by a conference between the evaluator and the employee in order for questions arising from the observation to be discussed. All of the evaluator's observations shall be compiled in writing

and a copy of the written observation report given to the teacher at the post-observation conference.

The supervisor and/or the evaluator involved in the particular area of the employee's work will assist the employee in correcting deficiencies. If there is insufficient progress in improving the deficiency, the evaluator and the teacher will develop a written plan for correcting the deficiencies which may include assistance from the supervisor. The plan shall include a reasonable time between observations to allow time for improvement in the areas of performance deficiency.

- 14.4 The Board's currently existing provisions and practices regarding evaluations of limited contract teachers who must be observed or evaluated pursuant to O.R.C. Section 3319.11 and 3319.111 are incorporated into this collective bargaining agreement by reference as Appendix D, and shall supersede all observation and evaluation procedures and deadlines as provided or required by statute.
- 14.5 If litigation and/or legislation amend or repeal the evaluation law in any way that requires the parties to change the terms of this Agreement, the parties agree to meet and revise the Agreement accordingly. In this situation, the changes will become effective upon ratification by the Board and the Association membership.
- 14.6 A good faith attempt by the Board to comply with all required evaluation or non-renewal procedures, as incorporated herein by reference, shall satisfy any and all legal requirements precedent to the nonrenewal of any teacher's limited contract. Therefore, any minor, technical or other immaterial failure to comply with these procedures by the Board, which do not prejudice the substantial rights of a teacher, shall not serve to inhibit the right of the Board to non-renew the limited contract of a teacher.
- 14.7 Observations and evaluations shall not be required as a condition precedent to the non-renewal of supplemental contracts or the decision to non-renew or not rehire substitute teachers and casual tutors whose contracts, if any, shall expire automatically, without notice, at the end of each school year.
- 14.8 An Employee may review with his or her immediate supervisor or evaluator an unsatisfactory evaluation, and have the right to make written objections to be included in his/her personnel file.
- 14.9 Only procedural compliance with this Article, and not the contents of any evaluation, is subject to the Grievance Procedure set forth in 7 herein. The Employee's opportunity to submit written objections described above shall be the Employee's sole recourse to dispute the contents of his or her evaluations except in disciplinary hearings before an arbitrator at which time an Employee may contest the contents of an evaluation if such evaluation formed the basis for an adverse personnel action.

ARTICLE 15.

SUBSTITUTE TEACHERS

15.1 Internal Substitution

- A. After asking for volunteers, teacher leaders shall be considered before assigning regular classroom teachers to cover for a class period. Teachers assigned by the building principal for class coverage shall receive additional pay equal to the full hourly rate of the present base salary for the class period. A teacher may cover one or more class periods. When all efforts to obtain a substitute have been exhausted, an Intervention Specialist or Tutor may be used as a last resort. Additional pay under this section shall only be provided to Intervention Specialists and Tutors during their planning period and/or lunch period. If an intervention specialist or tutor is used during their normal lunch period, they will receive a 30 minute lunch at a different time.
- B. If a teacher voluntarily agrees to teach an extra period per day, he/she shall be paid the proportional equivalent of his or her base salary daily rate (at the high school level and middle school level) for those days, weeks and months for which the extra period is taught. For example, if there are seven periods, then the teacher would be paid one-seventh (1/7) of his or her base salary daily rate. Prior to such an assignment, the teacher will sign a waiver which states that acceptance of the assignment is voluntary and which also states the rate at which the teacher will be paid for the extra period.
- C. In the event a substitute teacher is not available in the elementary school buildings, the District may elect to divide the class of the absent teacher among other teachers in the same building.

If the District chooses to divide the class of the absent teacher among other teachers, it shall be done in a manner that maintains a proportionate number of students in each classroom affected.

The District will then pay each teacher affected the current daily substitution rate as divided equally among those teachers. This payment shall be the only additional compensation received by these teachers.

If a music, art, or physical education teacher is absent, and the District moves those students each period to another of the three listed teachers above, throughout the day, the teacher will be given the entire daily substitute rate that would have normally gone to a regular substitute in the District.

15.2 External Substitution

The following provisions of the contract shall not apply to Substitute Teachers who are members of the bargaining unit because they have taught in one specific position for more than sixty (60) continuous days or one hundred twenty (120) school days in any combination of assignments during a single school year;

1. Assignment, Transfer and Promotion
2. Individual Teacher Contracts
3. Termination, Non-Renewal and Discipline
4. Reduction in Force
5. Personal Leave
6. Association Leave
7. Sabbatical Leave and Leave for Professional Study or any other Leave of Absence provisions of the Contract
8. Employment for Summer Work
9. Tuition Reimbursement and the ELF Fund

- 15.3 It is further understood by the parties that inclusion of a Substitute Teacher in the bargaining unit shall not guarantee or require the assignment of a Substitute Teacher to duty or payment for any day for which there is no need for the Substitute Teacher's services nor shall such inclusion entitle the Substitute Teacher any rights to employment or reemployment in any subsequent school year. Notice of non-renewal and all related provisions of Ohio Revised Code Sections 3319.10, 3319.11 and 3319.111 shall not apply to Substitutes who become members of the bargaining unit.

15.4 Permanent Substitutes (Floaters)

The District may hire permanent substitutes or floaters to cover for absent teachers during the school year. These employees shall be part of the bargaining unit entitled to all salary and benefits afforded them under the collective bargaining agreement. With the exception that they will not be assigned to any specific classroom and/or building, but exclusively used at the District's discretion to cover for any absent teacher. If no substitute is needed on a specific day, the floater will be used at the District's discretion.

ARTICLE 16.

TUTORS

- 16.1 As used in this Article and notwithstanding any other provisions of this Agreement, the term Tutor shall include only Employees under contract with the Board employed for and regularly assigned to a tutorial position in the regular day school program requiring the holding of a valid teaching certificate. Individuals satisfying the above definition shall be included in the bargaining unit.
- 16.2 The District's tutors include:
- A. EL Tutors
 - B. Home Instruction Tutors
 - C. Reading Tutors
 - D. Reading, Math, Technology Tutors
 - E. Alternative Instructional Method Tutor (AIM)
- 16.3 Tutors under contract and regularly scheduled for a full school day shall be considered full-time employees. If a tutor is scheduled for a 3.5 hour day, that tutor shall be considered a part-time employee. If a tutor is scheduled less than 3.5 hours per day, that tutor shall be considered a casual employee.
- 16.4 Full-Time Tutors

Full-time Tutors are a part of the bargaining unit. Full-Time Tutors are not entitled to bumping rights or seniority with regard to reduction in force or recall. Tutors are not subject to the 3-year waiting period for transfers into open full-time positions. Full-Time Tutors shall be granted seniority credit for placement on the Full-Time Tutors salary schedule and such credit shall transfer over if the employee is hired into a position under the regular teaching salary schedule. This position is dependent upon the availability of Title I funding. Tutors shall not be required to come in before or after the teacher workday. Full-Time Tutors' work year shall consist of one hundred and eighty (180) contract days. The student calendar may vary from year to year. To make up the days between the student calendar and the 180-day contract, Tutors shall be required to attend the first and last teacher workday of the school year. Any additional days needed to fulfill the 180-day contract shall be at the District's discretion as long as it aligns with the regular certified work year calendar. The District shall provide Tutors with their 180-day calendar prior to the start of each new school year. Furthermore, since the District has implemented late

arrival days, Tutors will be required to be present during the full teacher work day, along with all other certified employees.

16.5 Part-time tutors will be paid at an hourly rate of pay at the B.S.-0 rate for the hours in which they have worked.

16.6 Part-Time Tutor Contracts

A. Service as a Part-Time Tutor shall not be considered service for purposes of determining eligibility for a continuing contract.

B. All Part-Time Tutors' contracts will be given a one year limited contract that expires at the end of a given school year.

C. Benefits

Tutors under contract and regularly scheduled in excess of three and one-half (3-1/2) hours per day up to thirty-two (32) hours per week shall be eligible to receive all of the insurance related fringe benefits set forth herein except the Board shall pay 50% of the cost of the premium for said benefits. Tutors working more than thirty-two (32) hours per week shall be eligible to participate in the benefit program to the same degree as full-time employees. Furthermore, such full-time tutors will be eligible for personal days, sick leave, professional meetings and assault leave.

ARTICLE 17.

RESIDENT EDUCATORS

The Resident Educator program for Middletown City Schools shall follow the minimum requirements in state law as defined in ORC 3319.223, 3319.261 and Ohio Administrative Code 3301-24.

ARTICLE 18.

REHIRED RETIRED TEACHERS

Notwithstanding any other provision of this Agreement, if the Employer elects, in its sole discretion, to employ an individual who has retired and is receiving benefits through the State Teachers Retirement System, such individual shall be employed under a special limited contract, defined below. The Employer has the right to place the teacher between steps 5 and 15 on the salary schedule. The HR Director and the MTA President shall agree to any deviation from this range.

- A. Special Limited Contract – A retired teacher under STRS who is rehired shall be deemed a newly hired teacher regardless of the individual's prior service, whether with the Employer or another school district. Such individuals are eligible only for a one year special limited contract which shall automatically expire upon the completion of the school year for which such special limited contract was issued without the requirement of Board action, evaluation, nonrenewal or notice.
- B. The Employer, however, in its sole discretion may elect to reemploy such special limited contract teacher for the following year under the terms set forth above. The Employer's decision to employ or reemploy is not subject to the grievance and arbitration provisions of this Agreement.
- C. All health or dental insurance benefits will be provided to retired bargaining unit members employed under the provisions of this Article provided that they are not eligible to receive benefits elsewhere. The employee may opt out of coverage upon notification to the District.

ARTICLE 19.

PLANNING PERIOD/TEACHER PREPS/DUTIES

19.1 K-5/Central Academy

- A. Teachers in Grades K through 5 and Central Academy shall have two hundred twenty-five (225) minutes of planning time each week within the student day, in addition to their thirty (30) minute duty-free lunch period, but not necessarily daily, or in blocks of forty-five (45) minutes. Building Principals will strive to minimize the frequency and length of interruptions of teacher planning time.
- B. Substitutes shall be provided in the absence of art, music or physical education teachers in grades K through 5 and Central Academy.
- C. Scheduled non-classroom* duties in the elementary schools shall be equitably assigned among regular bargaining unit members. These duties shall not exceed one-hundred (100) minutes per week.

*Non-classroom duties are defined as those assigned out-of-classroom duties - before school convenes, during lunch period or after school dismisses.

- D. Special area teachers (art, music, PE), who may have open blocks of time within their schedules, may be used by the building administrator to relieve a classroom teacher for conferences such as IEPs or parental conferences; for intervention with

students; provide additional classes for development purposes; or for enrichment working with the classroom teacher.

19.2 Middle School - High School

- A. A teacher in grades 6-12 shall be assigned a maximum of one hundred sixty-five (165) students per day, subject to any applicable overload payment provided in Article 25. Except as provided below, such teachers shall have a maximum of three (3) preparations within a curriculum area per day except in self-contained classrooms. Teachers assigned to teach in two or more curriculum areas will be assigned a maximum of three (3) preparations. Teacher preparations will be assigned in the best interests of the students and teacher.
 - 1. Foreign language and special teachers (such as art, music, industrial arts, business education and physical education) may be assigned up to four (4) preparations per day.
 - 2. Academic teachers who teach a fourth preparation with the prior written agreement of the Senior Director of Curriculum Instruction will be entitled to a \$1,500 per year stipend, payable at the end of the school year.
 - 3. Special circumstances regarding preparations that are not directly addressed or resolved by reference to this paragraph shall be finally determined, on a case by case basis, by the Superintendent or designee.
- B. A teaching preparation is defined as a grade level or a different subject within a curriculum area. To the extent possible, teaching preparations will be cooperatively planned by the principal and faculty members in each department and, to the extent possible, the number of preparations will be equalized among the members of the department. However, the building principal and coordinator will make the final decision on assignment of preparations.
- C. Every teacher is to teach six (6) periods on a seven (7) period day with a regular program. No teacher will have more than six (6) classes per day or an equivalent load, if teaching on a modular program or eight (8) period day. Every teacher shall be guaranteed the equivalent of one planning period per day. Building Principals will strive to minimize the frequency and length of interruptions of teacher planning time.
- D. The assignment of homerooms and other non-classroom duty, such as cafeteria duty, shall be done in an equitable manner within each building.

ARTICLE 20.

FACULTY MEETINGS

The principal shall schedule only one (1) regular faculty meeting per month. Faculty meetings may be called either before or after school. Such meetings shall be held up to sixty (60) minutes. However, no teacher shall be required to remain before or after school more than sixty (60) minutes outside of their normal work day. Principals may call faculty meetings for a variety of reasons which may include but are not limited to furthering district initiatives or goals and may include professional development. The principal reserves the right to call additional meetings that address urgent/time sensitive matters.

ARTICLE 21.

SCHOOL DAY

- A. Unless otherwise assigned to a duty, all elementary (including Central Academy) teachers are expected to be in their respective rooms or assigned places for student supervision fifteen (15) minutes before the tardy bell and fifteen (15) minutes after pupil dismissal, not to exceed a 7½ hour workday. Within the teachers' workday, teachers are expected to supervise students upon student arrival at school. Teachers are expected to escort their students to their dismissal location and remain with their students until they are dismissed or loaded on their buses. After the end of the work day, students remaining shall be supervised by the supplemental contracted personnel. Student supervision before and after school are not considered duties.
- B. Unless otherwise assigned to a duty, all high school and middle school (including Highview Sixth Grade Center) teachers are expected to be in their respective rooms or assigned places for student supervision at least fifteen (15) minutes before the time for the tardy signal and for fifteen (15) minutes after the first pupil dismissal, not to exceed a seven and one-half (7½) hour work day.
- C. Teachers are expected to be present and performing their supervisory responsibilities during the time that pupils are required to be there, and according to the hours established by the Board.
- D. The length of the school day for all bargaining unit personnel shall be 7 hours, 30 minutes and a floating hour per week that will not require travel and will not include professional development.
- E. With the exception of open houses, parent teacher conferences (or individual student-related conferences held at the request of the parent, teacher or principal), MFEs, IEPs and IATs (or other conferences required by law), and contractually required faculty meetings,

all other meetings outside the teacher's seven and one-half (7½) hour work day will be voluntary. To the extent possible, MFEs, IEPs and IAT (or other conferences required by law) shall be held during the workday. The District will strive to limit after school meetings to one per week.

ARTICLE 22.

SCHOOL YEAR

The school year shall consist of one hundred eighty-five (185) contract days which shall be for instruction and in-service, except in the first two years of employment when up to four extra days may be added for in-service training at the district hourly rate.

At least two (2) seven and one-half (7½) hour in-service days will be provided at the beginning of the school year before the students' first day of school. During these days, members will have no less than fifty percent (50%) of the two (2) days to work independently.

One (1) seven and one-half (7½) hour in-service day will occur at the end of the first quarter. Members will have zero percent (0%) of this day to work independently. One (1) seven and one-half (7½) hour in-service day will occur at the end of the first semester. During this in-service day, members will have no less than fifty percent (50%) of the day to work independently.

One (1) seven and one-half (7½) hour in-service work day will be scheduled in the calendar following the last student day of the school year. This day will be set aside for dedicated time for teachers to work independently to close out the school year.

ARTICLE 23.

WORKROOM/LOUNGE

- A. Teachers shall have at least one room of appropriate size reserved as a faculty lounge in each building.
- B. All teachers shall have a quiet place to work during planning periods with access to a desk and file cabinets.

ARTICLE 24.

BUILDING PROCEDURES

- A. Each principal will provide each teacher assigned to the building with a handbook, written rules, regulations, and/or procedures at the beginning of each year.
- B. Except in cases of medical emergencies, teachers shall not be required to administer medication to any student nor shall they be required to perform medical procedures such as catheterization. Proper medical training/instruction shall be made available and required of all teachers of children with special medical needs during contracted work hours.
- C. In the absence of an administrator, the principal shall designate a professional teaching staff member to act as the principal's representative.
- D. No grade given to a student by a teacher will be changed without first consulting with the teacher concerning the circumstances necessitating the change.

ARTICLE 25.

CLASS SIZE

The following pupil-teacher ratios are maximums in assigning students to classrooms in the District. Every reasonable effort shall be made not to exceed the maximum daily averages, including overloads, as set forth below.

		<u>Maximum</u>
A.	Grades K-2	25
B.	Grades 3-5	27
C.	Grades 6-12	<u>Maximum Daily average</u>
1.	English, Social Studies, Science, Mathematics, Foreign Language, Health, Art, Speech, Drama	27.5
		<u>Maximum</u>
2.	Physical Education	35
3.	General Music	32
4.	Remedial classes in	22

academic areas

- D. "Team Teaching" at the K-3 level is defined as two or more teachers serving the needs of students in one physical setting. Except for newly hired teachers, team teaching assignments shall be on a consensual basis. Otherwise, a non-consenting teacher shall be treated as an involuntary transfer at that point in time. The class size range for K-3 teams are 34 at the maximum (in 15-1 or reduced size classrooms).
- E. Special Education
- Pupil-teacher ratios in all special education classes shall meet the current standards required for approval by the State Department of Education.
- F. Overload Payments for Grades K-5
1. In the event that the maximum number of students per class is exceeded, beginning on the eleventh (11th) student day after the first day of school, the classroom teacher will receive \$6.00 per the number of students over the maximum limit times the number of days retroactive to the first day that the overload occurs. However, the maximum class sizes stated above for grades K-5 shall not be exceeded by more than three (3) students.
 2. Student enrollment will be verified by the official attendance record kept by the teacher and the principal's office. Payment for student overloads will be paid on or before the last pay period in June.
- G. Overload Payments for Grades 6-12
1. In the event that the number of students per day assigned to an academic teacher (those set forth in paragraph C.1., above) exceeds one hundred sixty-five (165) students per day beginning on the eleventh (11th) student day after the first day of school, the teacher will be entitled to receive overload payments at a rate of \$1.50 per student over the one hundred sixty-five (165) student limit times the number of days the overload occurs retroactive to the first day that the overload occurred. However, the maximum number of students per day shall not exceed one hundred seventy-five (175) students for academic teachers.
- In addition, if on the 11th day after the first day of school, an academic teacher's student class exceeds thirty (30) students, the teacher will be entitled to receive overload payments at a rate of \$1.50 per student over the thirty (30) student limit times the number of days the overload occurred.

2. Student enrollment will be verified by the official attendance record kept by the teacher and the principal's office. Payment for student overloads will be paid on or before the last pay period in June.

ARTICLE 26.

PROTECTION OF TEACHING STAFF

26.1 The Administration recognizes its responsibilities to support professional teaching staff members in the performance of their duties and shall fully support and assist professional teaching staff members in the maintenance and control of discipline in the schools. In fact, the Board of Education is most anxious to emphasize Board policy regarding teachers carrying out their responsibility in regard to maintaining discipline both within the schools proper and on school grounds, including hallways, restrooms, parking lots, etc. In accordance with Section 3319.41 of the Ohio Revised Code, a professional staff member, principal, or administrator may use only such force as is reasonable and necessary to quell a disturbance threatening physical injury to others, to obtain possession of weapons or other dangerous objects upon the person or within the control of the pupil, for the purpose of self-defense, or the protection of persons and property. It is the responsibility of the professional teaching staff member to provide a classroom learning situation which provides an atmosphere for learning to take place. When it becomes apparent that a breakdown in classroom discipline is caused by a particular pupil who is disruptive in nature, it is the duty of the professional teaching staff member and the principal to find a reasonable solution to the problem.

26.2 Assault

- A. All cases of physical threat or violence to members of the staff shall be reported to the principal immediately after occurrence. If, in the judgment of the teacher and/or the principal, the assault is sufficiently severe, the police shall be notified. However, a teacher on his or her own initiative may, and shall, if requested by the Employer, file criminal charges against the person(s) assaulting him/her. A written report of all assaults on staff personnel will be made to the Superintendent for further investigation and possible expulsion of the student. Any professional teaching staff member who is assaulted may be excused by the principal to seek a physician's evaluation of his/her injuries. Such leave shall be at no loss in pay and shall not be chargeable to sick leave provided the employee provides a doctor's note.
- B. A teacher who has been assaulted shall make an immediate oral report to the principal or his/her designee. The teacher shall also make a written report to the principal before leaving school that day or as soon as physically possible. The

report shall contain all relevant facts and include the names of teachers, students and/or other persons who were witness to the assault.

- C. At the teacher's request, and upon receiving approval from the building principal, the accused student or students will be immediately withdrawn from the affected teacher's class(es), pending investigation, with full consideration given to the possibility of suspension, expulsion and/or other remedies. Approval shall not be unreasonably denied.
- D. If criminal or juvenile court action results, the teacher shall be granted leave of duties without loss of pay or consultation as may be requested by the prosecuting attorney, the court, or law enforcement officers.
- E. Whenever a newly hired teacher is out of sick leave, and is absent from school as a result of an assault arising out of his/her assigned duties, he/she will be paid his/her full salary for the period of his/her absence due to the injury(ies) up to a maximum of one week (seven calendar days) immediately following the assault/injury.

26.3 Complaints Against Staff

- A. Upon receiving a complaint from a complainant against a professional teaching staff member, the principal shall give a copy to the professional teaching staff member involved if written, or in the alternative, the principal may opt to discuss it with the teacher within a reasonable period of time following the receipt of the complaint. If the complaint becomes a matter of record, the member shall receive a written copy.
- B. If a conference is deemed necessary by the professional teaching staff member, the principal and the complainant, guidelines shall be followed as set forth under Board Policy and every effort shall be made to notify the parent(s) or legal guardian of a student complainant of the date, time and place of the conference.
- C. Teachers are expected to arrange time for conferences with students and/or complainants either during the school day or immediately after the close of school, provided the student and/or the complainants request the conference at least one day in advance. The time and length of the conference should be kept as flexible as possible in order to accommodate all parties concerned. Teachers are not expected to interrupt their classes to arrange a small conference unless the principal approves.
- D. If appropriate, the principal shall forward a letter to the complainant indicating the disposition of said matter. A copy of same shall also be given or sent to the teacher involved.

LEAVES OF ABSENCE

ARTICLE 27.

SICK LEAVE

The following leave provisions will be applicable to full-time professional teaching staff members.

Sick Leave

- A. Days or hours of absence in $\frac{1}{4}$ day increments authorized under this provision shall be deducted from the sick leave accumulation. One and one-fourth ($1\frac{1}{4}$) days of sick leave shall be given full-time employees for each completed month of employment up to fifteen (15) days per year. Employees shall be permitted a maximum accumulation under this Article of two hundred fifty (250) days.
- B. All accumulations of unused sick leave credit heretofore accrued under prior laws and policies shall remain to the credit of the sick leave account of each employee on the effective date of this regulation. Accrued credits shall be allowed to employees transferring their employment from other boards of education or other political sub-divisions in Ohio, provided such credits have been computed under the minimum requirements of the laws of the State of Ohio. Sick leave up to a total of fifteen (15) days shall be allowed for teachers who come from other states, where such sick leave has accumulated under the laws of that state and is certified by the proper school official. In no event shall sick leave accumulate at a faster rate than allowed by Ohio law.
- C. On reporting to duty each newly hired employee shall be credited with five (5) days of sick leave. The five (5) days shall be concurrent with, but not in addition to the one and one-fourth ($1\frac{1}{4}$) days permitted below and R.C. 3319.141.
- D. At the completion of each month of service, one and one-fourth ($1\frac{1}{4}$) days of sick leave shall be credited to the sick leave account of the employee for the actual number of months of service rendered. Persons who have been employed in the Middletown City School District for a period of five (5) years or more and who have consumed all presently accumulated sick leave, on the recommendation of the Superintendent or designee and approval of the Board of Education, may be granted an advancement on their sick leave to be earned thereafter. Employees shall return borrowed sick leave days to the employer as credited each month until such time that all days have been returned to the District. If an employee leaves employment with the District for any reason, before repayment of all borrowed days, the District shall withhold any such amount from the employee's final paycheck.

- E. The same accrual of one and one-fourth (1¼) days per month shall continue during the use of sick leave, provided the employee has not been officially separated from the present payroll.
- F. Sick leave shall be used for periods not to exceed their accumulated sick leave account for the following causes:
 - Personal illness or injury,
 - Exposure to contagious disease until quarantine is lifted or danger removed,
 - Death of father, father-in-law, mother, mother-in-law, spouse, or child,
 - Death of sister, brother, aunt, uncle, grandparent or step-parent,
 - Death of close friend, distant relative, or neighbor (up to 2 days maximum),
 - Serious illness or death in the employee's immediate household,
 - Serious illness of parents, grandparents, mother-in-law, father-in-law, children, son-in-law, daughter-in-law or grandchildren living in a separate household when the presence of the employee is necessary,
 - Serious illness of brother or sister living in a separate household (up to 3 days maximum),
 - Disability or illness due to pregnancy.
- G. If an administrator has a concern with an employee's excessive or unusual pattern of sick leave use, they must request a meeting with the employee to discuss their concerns. If the explanation of use satisfies the administrator's concerns, the matter shall be closed. If the administrator still has concerns, they may require the employee to provide statements, written evidence, affidavits or other valid proof substantiating the reason or cause for the sick leave. Said proof shall be submitted to the building principal and then forwarded immediately to the office of the Superintendent. For all meetings, the employee shall have the right to Association representation. The meeting referenced above is not a prerequisite to discipline. If poor attendance continues, the administrator may require a doctor's note for all future absences for the remainder of the current school year.
- H. The employee may appeal in writing to the Superintendent or designee for special consideration for additional sick leave because of extreme hardship.
- I. Any teacher who has two hundred fifty (250) sick days accumulated as of the first work day of each school year is entitled to use up to fifteen (15) days of sick leave before any sick leave will be subtracted from his/her total of two hundred fifty (250) days. No more than two hundred fifty (250) days can be accumulated. This Section (I) only applies to employees who have notified the District of their intent to retire by December 1 of the retirement year.

- J. Falsification of sick leave is grounds for termination.
- K. Upon exhaustion of accumulated sick leave, an employee may make an application for borrowed sick leave for a catastrophic illness in accordance with the Emergency Leave Fund (ELF) Plan provisions set forth in Appendix E to this contract.

ARTICLE 28.

PERSONAL LEAVE

A. Personal Leave

- 1. Each employee shall be entitled to three (3) days of absence, with pay, each school year due to personal reasons, which days shall not be deducted from sick leave. The employee shall give his/her principal or supervisor forty-eight (48) hours advance notice of his/her intention to take such leave, except in rare circumstances when such notice is not possible. When a staff member is absent for personal reasons, a report of such absence, signed by the employee and his/her principal or supervisor, shall be filed with the Treasurer within ten (10) days following the day of absence. Personal days will not be permitted the first or last day of school, records day or the day before or after school holidays or an extended vacation period. However, in special emergency situations, at the discretion of the principal, these limitations may be waived.
- 2. During the school year personal days shall be limited on any particular day as follows:

<u>Teaching Staff Size</u>	<u>No. of Teachers Permitted Personal Leave Day</u>
15 or fewer	1
16 through 19	2
20 through 49	4
50 through 74	6
75 or more	8

- 3. Traveling teachers for whom a substitute would normally be assigned shall be attributed to the school where they are first assigned on the requested day. Other traveling teachers shall not be included in the calculations.
- 4. However, in special emergency situations at the discretion of the principal, the limitations stated above may be waived. In cases where more requests

are made than allotments available, requests will be granted on a first-come, first-served basis.

- B. Any unused personal leave day(s) shall be converted to sick leave at the ratio of 1:1 at the end of the school year.

ARTICLE 29.

PROFESSIONAL LEAVE

- A. Application form, provided by the Central Office, shall be submitted to the principal or supervisor at least two (2) weeks prior to the date of the meeting. A written approval or rejection will be returned to the applicant from the Central Office.
- B. Attendance shall be authorized by the Superintendent in accordance with the school system needs and fund limitations approved in the school budget.

ARTICLE 30.

ASSOCIATION LEAVE

Association Related Meetings

- A. Leave
 - 1. The local Association President and officially elected delegates or alternates shall be granted leave to attend the OEA Spring and Fall Representative Assemblies, not to exceed three (3) days per delegate. Any additional leave for such meetings will be at the discretion of the Superintendent. Association business shall be conducted outside of school hours except in cases of exigent circumstances.
 - 2. The Board is not obligated for any expenses related to the assemblies except to provide released time for said president, delegates, or alternates.
 - 3. The Association shall be responsible for providing cost of substitute teachers in the absence of said president, delegates, or alternates.
- B. The Association President or President's designee shall also be allowed five (5) days released time in order to do Association-related business such as grievance hearings or building staff meetings. Such time will be at the President's discretion (with notice to the Director of Human Resources) and the Association will pay one-

half (1/2) of the substitute cost. Any additional leave time beyond the five (5) days will be at the discretion of the Superintendent.

- C. The Association President or his/her designee may request additional release time for Association business and the Association will pay for substitute wages for approved days.

ARTICLE 31.

EMERGENCY LEAVE

Days of absence authorized under emergency leaves shall be fully paid days unless otherwise stipulated in each individual emergency leave, and shall not be deducted from sick leave accumulation.

- A. Jury duty – Absence for jury duty is permissible. On absences for jury duty the employee shall receive full payment of his/her regular salary and does not have to reimburse any nominal payment for such services to the Board.
- B. The Superintendent or designated representative, in his/her discretion, may authorize absences for other justifiable emergency reasons. The reason for such requests shall be stated in writing.
- C. Emergency leave requests shall be submitted as soon as possible after the professional staff member becomes aware that emergency leave is necessary.

ARTICLE 32.

WORKERS COMPENSATION

32.1 Service-Connected Injury Leave

In the event of a service connected occupational illness or injury occurring in the scope of a teacher's employment and arising out of such employment by the Board, as determined by the Industrial Commission of Ohio, the teacher may elect to be paid the difference in pay between Worker's Compensation benefits and his/her regular compensation with such difference being charged to the teacher's sick leave on a percentage or fractional basis. This will be accomplished by presenting evidence of the amount received from the Bureau of Worker's Compensation to the Treasurer of the Board, and thereafter the Treasurer of the Board will issue a check for such difference. Teachers shall be expected to return to duty when able to resume duties and will be entitled to reinstatement under the same provisions as though returning from sick leave. The teacher and his/her physician shall determine when the teacher returns to duty. The Board may require a certification from the teacher's

physician that the teacher is able to resume teaching duties before being allowed to return to duty.

ARTICLE 33.

SABBATICAL LEAVE

Sabbatical Leave

- A. A teacher who has completed five (5) years of service in the Middletown City School System may, with permission of the Board, be entitled to take a leave of absence with part pay, equal to the difference between the substitute's pay and the teacher's expected salary, for one or two semesters subject to the following restrictions:
 - 1. Application submitted by March 1, of school year prior to beginning of leave.
 - 2. A plan of study in education approved by the Superintendent.
 - 3. Provide evidence at the conclusion of the leave that the plan was followed and credit received.
 - 4. Agree to work for Middletown City Schools for one year following completion.
- B. No more than five percent (5%) of the teaching staff may be on leave at one time.

This section is subject to all other provisions of Section 3319.131 of the Ohio Revised Code.

ARTICLE 34.

UNPAID MEDICAL LEAVE

Unpaid Medical Leave

- A. Employees shall be entitled to family and medical leave in accordance with the Family and Medical Leave Act of 1993, as amended.
- B. In addition to having FMLA benefits, and upon Board approval, prior to the expiration of sick leave the employee who is ill may request a leave of absence for personal illness not to exceed two (2) years that will run concurrently with any unused FMLA benefits. A doctor's statement requesting the granting of said leave must accompany each application.

- C. Nothing in this section will be construed to preclude a teacher from returning to active employment from leave status with a doctor's statement of approval. However, a teacher may not return to duty prior to the end of the term or semester without the employer's approval.

ARTICLE 35.

CHILD CARE LEAVE

Child Care Leave

- A. Leave Rights – A professional staff member may request and shall be entitled to a leave of absence without pay for maternity or child care reasons to begin during the third trimester of pregnancy or immediately after the birth of a child, or in the case of adoption, the receipt of custody. Such leave shall be for the remainder of the current semester and one additional school year, if desired.
- B. Application for Leave – Application for child care leave shall contain a statement on the expected date of birth, or in the case of adoption, the date of obtaining custody, the date on which the leave of absence is to commence and the term of the leave.
- C. Rights While on Leave – Professional staff member on maternity leave or child care leave shall be entitled to request and receive the right to continue to be covered by any/or all district group insurance, providing the insurance company or hospital service association involved permits such continuance of coverage of the person on leave of absence and the professional staff member pays to the Treasurer of the Board in advance each quarter the full amount of the quarterly group plan premium of such coverages. Any overpayment of premium shall be refunded to the staff member upon termination of leave. No other compensation or fringe benefits shall be provided.
- D. Reinstatement Rights – Upon returning to service at the expiration of a leave of absence, the teacher resumes the contract status which he/she held prior to the leave. When an individual who is on an authorized leave of absence with a time-certain, determines that he/she wishes to return to active employee status prior to the expiration of the full term of said leave of absence, the Board through its authorized representative shall make every effort to return the individual to the same contract status that the individual had prior to leaving, subject however, to the then current needs of the school district.
- E. Child Care Leave – Child care leave provisions of maternity leave apply to either of the adopting or natural parents (father or mother).

ARTICLE 36.

MILITARY LEAVE

Military Leave

Military Duty – All professional staff members of the Middletown City Board of Education, who are eligible shall receive military leave in accordance with state and federal law. Employees shall provide proof of military orders before leave will be granted.

ARTICLE 37.

PROFESSIONAL ORGANIZATION LEAVE

Office in State or National Professional Organizations

Upon request of the MTA, a member of the certified staff elected to a state or national office of a bona fide professional organization at either state or national level will be granted a leave of absence not to exceed two (2) years; bona fide professional organization to be determined by MTA President or Superintendent.

ARTICLE 38.

COMPULSORY LEAVE

Compulsory Leave

School Related: In all school related cases where professional staff members are witnesses or representatives of or on behalf of the Employer, they shall be paid the normal salary for the period of absence.

ARTICLE 39.

OTHER LEAVES

Other Leaves

Other leaves may be granted by the Superintendent. The request shall be in writing. The leave request shall be granted unless the Superintendent determines in his/her reasonable discretion that: (1) the leave request is not for a good reason; or (2) that the leave can be taken at another time without an absence from work; or (3) that the request was without sufficient notice; or (4) that a substitute could not be obtained for the days requested.

COMPENSATION

ARTICLE 40.

ADMINISTRATION OF THE SALARY SCHEDULE

- 40.1 Teachers may advance on the salary schedule from one degree level to another, or to the immediate step beyond a degree, such as B.S. plus 20, twice during a school year upon successful completion of schedule requirements. An official transcript from the training institution must be presented to the Office of Human Resources to certify the degree (i.e.: Masters Degree) or the completion of course work for additional hours and such must be received in the office of the Director of Human Resources before October 15, for a full year adjustment and March 15, for the second semester of the school year to be eligible for the full or half year adjustments.
- 40.2 Staff development and curriculum development for certificated personnel will be at the District hourly rate.
- 40.3 Payroll Deductions

The following payroll deductions will be provided by the Middletown Board of Education:

TAXES

The Employer shall deduct all taxes required by law.

OTHER DEDUCTIONS

Vision Service Plan (VSP)

Middletown Area Schools Credit Union

Butler Health Plan (BHP)(Health and Dental Care)

Conseco (Cancer, Hospital Intensive Care and Heart Ins.)

UNUM Life Insurance Company (Disability)

NEA/OEA/SWOEA/MTA Unified Dues

Middletown Area United Way

OEA-FCPE/The NEA Fund for Children and Public Education

Child Support Payment (Court Ordered)

Wage Garnishments (Court Ordered)

Other Court Orders

It is understood by the parties that the names of the particular insurer or charity, etc., may change at the discretion of the employer, or in accordance with any other existing agreement.

40.4 Pays

- A. All certificated employees will automatically be on a twenty-four (24) period pay plan.
- B. All certificated employees shall be paid by direct deposit.
- C. The District will provide twenty-five (25) pays to all new hires when the teacher school year begins on or before August 10. This pay will begin with the second (2nd) payroll in August.

40.5 New Hire Incentives

- A. The Board may, at its option, pay any new hire up to three thousand five hundred dollars (\$3,500.00) for relocation to the Middletown School District on or before the first pay date of a new school year.
- B. The Board may pay a one-time lump sum, not to exceed \$5,000, as a new employee incentive payment to any new hire in math, science, foreign language, or in any other positions that are difficult to fill as mutually agreed to between the Superintendent or designee and the MTA President.
- C. The maximum amount any new hire can receive as an incentive for either 40.5(A), (B), or a combination of (A) and (B) is \$5,000.
- D. Any new hire who receives a new hire incentive must agree to remain with the Middletown City School District for two (2) years. Any new hire who fails to remain employed by the District for the required two (2) year period shall repay the full cost of the new hire incentive.

40.6 Micro-Credentialing Incentive

Teachers who complete micro-credentialing courses with Digital Promise or another vender approved by the District will be eligible for a micro-credentialing incentive. Such courses must be pre-approved by the Superintendent or designee.

Teachers who complete a single course will receive \$200 upon proof of successful completion. Teachers who complete a 3 course “stack” will receive \$600 upon proof of successful completion. Teachers may only receive one micro-credentialing incentive (one single course or one stack).

Current teachers must complete the micro-credentialing course in the 2021-2022 or 2022-2023 school year. Employees hired in the 2022-2023 school year must complete the micro-

credentialing course in the 2022-2023 or 2023-2024 school year. New hires in the 2023-2024 school year are eligible for a micro-credentialing incentive in the 2023-2024 school year only.

Participation in the micro-credentialing course is strictly voluntary and the District agrees to pay any fees and assume any costs associated with taking the micro-credentialing courses. No teacher will be required to pay back any costs or fees regardless if they pass or fail the course.

40.7 Counselors

Counselors in grades 6-12, excluding Central Academy, will be paid on the basis of the regular teacher's salary schedule, plus an additional sum in the form of a twenty (20) day extended contract to compensate for additional duties, including a seven and one-half (7½) hour day. Ten (10) days are to be served both before and/or after the one hundred eighty-five (185) day contract year.

40.8 The Teacher and Tutor salary schedules are attached to this Agreement as Appendix A and Appendix B, and shall reflect the following.

A. 2021-2022: 3.0% wage increase retroactive to July 1, 2021.

Current employees as of the date of ratification in 2021 will receive a \$1,000 one-time COVID-19 recovery stipend.*

2022-2023: 2.0% wage increase.

1.0% one-time COVID-19 recovery stipend, which will be paid by the first payroll in November.*

* The COVID-19 recovery stipends referenced above are provided to address challenges related to the COVID-19 pandemic, including recruitment or retention challenges, compensation for staff that work in-person, compensation for staff who have assumed new duties because of COVID-19, to incentivize effective teachers to move to and work in schools with vulnerable students disproportionately impacted by the pandemic, and/or other issues resulting from the COVID-19 pandemic.

B. At the beginning of each school year, employees will advance one step through the District Salary Schedule.

C. The parties agree to implement a step recovery process. This process is only applicable to "Impacted Employees." Impacted Employees are those employees

who were employed by the district and who did not receive a step increase between 2011 and 2016.

When Impacted Employees reach step 20, those employees will annually recover one step on the schedule in addition to the yearly step advancement as noted above until they have fully recovered all steps they did not receive between 2011 and 2016.

- D. Retroactive to the beginning of the 2021-2022 school year, the tutor salary schedule will receive a 1.5% salary adjustment in addition to any wage increase as described in Article 40.8(A) above.

ARTICLE 41.

SUPPLEMENTAL CONTRACTS

- 41.1 The supplemental teacher contract for extra duty assignment and granted additional compensation shall be separate from and in addition to the regular teaching contract and shall include the following:
- A. Specific supplemental assignment.
 - B. Salary and date(s) of payment.
 - C. Signatures of both parties to the contract and the date of the signing of the contract.
 - D. A job description will be attached and signed by the Employee and supervisor. (Copies of which will be provided to the MTA)
- 41.2 The supplemental teacher contract shall be for one (1) year which will automatically terminate at the close of the school year for which it was issued without Board action of evaluation, nonrenewal or notice.
- 41.3 Supplemental Pay Schedule
- A. Each salary on the attached Supplemental Pay Schedule shall reflect a percentage rate of the newly negotiated base pay (BA, 0 Step).
- These percentages shall become the Supplemental Pay Schedule.
- B. Administration of the Schedule
 - 1. An employee shall advance one step on the supplemental scale with each year of experience.

2. Past experience in the same assignment shall count towards placement on the supplemental salary schedule.
 3. The supplemental pay shall be computed by multiplying the index percentage corresponding to the teacher's position experience by the base salary.
- 41.4 The Superintendent or designee may place a person at an appropriate step on the pay schedule instead of Step 0 if the person employed has had significant experience in the activity such as coaching without pay, college experience in that sport, director of summer theater, etc.
- 41.5 Vacant supplemental positions and all non-certified supplemental positions which result from resignations and non-renewals shall be posted on the district website for a period of five (5) days. Any qualified teacher may apply, in writing, to the office of the Director of Human Resources prior to the expiration of the posting period.
- 41.6 All current employees who meet the necessary qualifications will be considered for the position prior to the position being filled by a non-bargaining unit person.
- 41.7 The failure to apply for or accept a supplemental contract or the failure of the District to renew a supplemental contract shall have no adverse effect on the Employee's evaluation of his/her regular contract, unless the employee engages in misconduct.
- 41.8 Each year, the District will issue a detention supplemental contract in each building pursuant to the supplemental contract provision of this Agreement.
- 41.9 The District may prorate supplemental contract payments if the season or program is suspended or cancelled, or the employee otherwise fails to complete their duties for the entire season/program. If the season is suspended or cancelled by the District, coaches/employees shall receive 25% of their supplemental contract amount for off-season conditioning and/or preseason work. The remaining 75% of the supplemental contract will be prorated based on the number of days the season/program was suspended as a percentage of the total number of days of the season/program.
- 41.10 A supplemental committee shall be formed to conduct a systematic review of the supplemental schedules, positions and pay structures. The committee will consist of up to 5 representatives from the District as chosen by the Superintendent and up to 5 representatives from the MTA as chosen by the MTA President. The parties agree to meet at least quarterly beginning with the 2021 school year. The goal of this committee is to present to the respective bargaining teams a mutually agreed to proposal to be negotiated into the successor agreement. If a mutual agreement is not reached the parties will present their work to the negotiations teams for consideration.

ARTICLE 42.

INSURANCE

- 42.1 The Employer and Association agree to accept and join the Butler Health Plan (BHP) for medical and dental insurance coverage for the term of this Agreement. The Board reserves the right to provide different insurance options provided the plans are substantially similar to the current plan.
- 42.2 The Board will pay eighty percent (80%) of a single or family membership in medical insurance.
- 42.3 The Board will pay eighty percent (80%) of a single or family membership in dental insurance.
- 42.4 The Board of Education will pay the cost of a forty thousand dollar (\$40,000) term life insurance policy with double indemnity clause for accidental death or dismemberment for all employees who work more than twenty (20) hours per week
- 42.5 Subject to the requirements of the insurer, the Board of Education will provide single vision insurance not to exceed a maximum contribution by the Employer of four dollars and forty-two cents (\$4.42) per month, per employee. All employees shall be required to enroll and pay for vision coverage. The remainder of the cost for vision coverage will be provided by the employee through payroll deduction.

Subject to any applicable enrollment limits by the insurer, the cost for dependent coverage shall be the responsibility of the employee and must be paid through payroll deduction.

- 42.6 Each new employee will receive insurance coverage on the first billing date after the start of the school year providing a timely application has been filed. Termination of coverage will be effective on the billing date following the termination date of the employee.

- 42.7 Section 125 Plan

The Board of Education shall implement a full Section 125 plan for employees' insurance premiums and other medical and dependent care expenses.

42.8 STRS Pick-Up

The Board of Education hereby agrees with the Association to the tax sheltering method of the pick-up of employee contributions to the State Teachers Retirement System of Ohio (STRS). The pick-up will include retirement benefits paid on all salaries and wages, including supplementals, overtime and extended time.

42.9 Annuities

- A. Changes from one annuity provider or carrier to another and changes in the amount of salary reductions will be accumulated by the Treasurer and applied to the next succeeding payroll.
- B. Designation of new annuity providers shall be considered viable agents by the District when they have met the required minimum of the greater of one percent (1%) of the District's full-time employees or five (5) employees. Annuity deductions shall begin when the new annuity provider meets the required minimum number of contracts.
- C. The District will provide an avenue for tax sheltering the severance pay benefit.
- D. A list of approved companies shall be kept on file with the Office of the Treasurer.

ARTICLE 43.

TUITION REIMBURSEMENT

- 43.1 Believing that our staff of teachers as a group will make a greater contribution to the children they serve if additional training is obtained in fields related to their work, the Middletown Board of Education will reimburse to a teacher toward the tuition costs in college courses he/she has completed within the present calendar year, in which a grade of "B" or better is earned, or for certain approved CEU courses, provided he/she enrolled in courses approved in advance by the Superintendent or designee, while under contract to the Middletown Board of Education. The total reimbursement for these college or CEU courses shall not exceed \$1,300 in any one fiscal year for any individual teacher, and the total annual tuition reimbursement under this Article shall not exceed \$75,000 for all bargaining unit members.
- A. All courses must be from an accredited, four year institution recognized for certification purposes by the Ohio Department of Education.
 - B. Courses approved for CEUs will be courses which directly apply to the teacher's present teaching position and certification or used in the renewal of a teaching license as reflected in an employee's Individual Professional Development Plan.
 - C. A pass/fail grade will only be honored when it is the only grade given for a particular course.
 - D. A teacher must be employed by the Middletown City School District for two (2) consecutive semesters to be eligible to participate in the above program.
 - E. Any teacher who receives a tuition reimbursement must agree to remain with the Middletown City School District for two (2) years after the course(s) completion. Any teacher who fails to remain employed by the District for the required two (2) year period shall repay the full cost of the tuition reimbursement.
- 43.2 Payment for tuition reimbursement shall be made one time each fiscal year in June. Available funds shall be allocated and if necessary, prorated among all submissions. All paperwork necessary for the payment of the tuition supplement must be in the Human Resources Office no later than the first pay dates in June. The employer may elect to move to an electronic submission of all required paperwork and will provide employees with the written process for their electronic submissions. If an employee does not submit for reimbursement according to the established deadlines, the employee's request may be denied.

- 43.3 A supplemental salary shall not be paid for any course where the teacher has previously received financial aid for the course or courses in question in the form of a scholarship, fellowship, or grant-in-aid, except in the case of a teacher who has received a tuition certificate in recognition of his/her services as a cooperating teacher for supervising a student teacher. The Board of Education shall pay such teacher, provided he/she enrolls in a college course, in an amount equal to the equivalent tuition costs of the course at the university where the certificate was issued.

ARTICLE 44.

SEVERANCE PAY

- 44.1 Upon retirement from the Middletown City School District as defined under Ohio Revised Code 124.39, an employee shall be compensated for a sum equal to one-fourth (1/4) of their accumulated unused sick leave.
- 44.2 The rate of compensation for a certificated employee shall be the employee's daily rate as determined by dividing the annual salary by the number of duty days (185).
- 44.3 A teacher with five (5) years of service in the district who dies while in active service is deemed for purposes of this article to have retired the day prior to his/her death.
- 44.4 Beginning July 1, 1996, bargaining unit members who maintain perfect attendance (no sick leave days, no personal leave days and no salary deduct days) during a school year (July 1 to June 30) shall receive one (1) additional day of severance allowance up to a maximum of sixty-five (65) days.
- 44.5 In addition to the benefit provided above, teachers who notify the Board on or before November 1 of the school year in which the employee will retire shall receive as incentive two days of compensation (the employee's daily rate as determined by dividing the employee's annual salary by the number of duty days [185]).
- 44.6 In addition to the benefit provided above, employees who retire during their thirtieth (30th) year of service will be entitled to be compensated for unused sick leave to the extent of one (1) day for each three (3) days of such unused sick leave accumulated for the accumulated sick leave days between one hundred eighty (180) and two hundred fifty (250), provided such employee gives written notice of such retirement to the Director of Human Resources by December 1 of such thirtieth (30th) year of service, such employee completes the entire school year of work, and such employee has accumulated no less than two hundred and fifty (250) days of sick leave by the final pay period of such thirtieth (30th) year of service.

ARTICLE 45.

CALAMITY DAYS

- 45.1 “Calamity Days” are defined as any days schools are closed by the administration due to snow, or other inclement weather, calamity or energy reasons. Teachers shall be required to report to their buildings on calamity days on which students are assigned to perform school work, like “e-days.” In the alternative, teachers may remain at home to respond to student/parent emails and to provide necessary assistance only if the teacher can connect to the internet, the District’s web-based software, and have access to any other technology that is necessary to accomplish their duties.
- 45.2 When the administration determines that a delay in the starting time is necessary, teachers shall report no later than thirty (30) minutes prior to the scheduled commencement of classes.
- 45.3 When the administration determines that an early dismissal is warranted, teachers shall not be required to remain more than thirty (30) minutes following the dismissal of students.
- 45.4 However, the Superintendent may make such emergency decisions necessary, in the best interest of the school district’s education process, which would alter the defined normal procedures to be followed in the event of canceling, delaying, or early dismissing school.

ARTICLE 46.

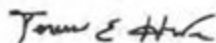
DURATION

This Agreement shall become effective as of July 1, 2020, and shall continue until June 30, 2023. Thereafter, it shall continue in force from year to year unless either party hereto shall notify the other in writing at least sixty (60) days prior to the expiration of the term or extended term of this Agreement, of any intention to make changes in or terminate the Agreement.

FOR THE ASSOCIATION



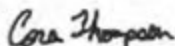
Laurie Wood, President
Middletown Teachers Association



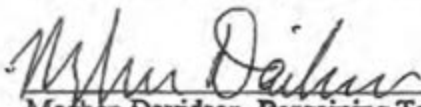
Teresa Howe, Bargaining Team Member



Amy Dorn, Bargaining Team Member



Cora Thompson, Bargaining Team Member



Meghan Davidson, Bargaining Team Member



Jeff Nolasco, Labor Relations Consultant
Ohio Education Association

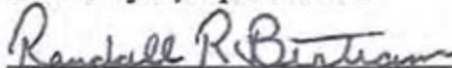
FOR THE BOARD



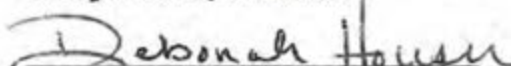
Dr. Chris Urso, President
Middletown City Board of Education



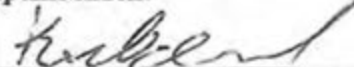
Marlon Styles, Superintendent



Randy Bertram, Treasurer



Deborah Houser, Assistant
Superintendent



Kee Edwards, Assistant Director of HR



Carmela Cotter, Principal



Jack Hemenway, Attorney
Frost Brown Todd LLC

APPENDIX A
Teacher Salary Schedule

Teacher Salary Schedule
2021-2022 School Year



185 Contracted Work Days

Step	Bachelor's Degree		Bachelor's Degree Plus 20 Sem. Hrs.		Master's Degree		Master's Degree Plus 20 Sem. Hrs.		Master's Degree Plus 30 Sem. Hrs.	
	Index	Salary	Index	Salary	Index	Salary	Index	Salary	Index	Salary
0	1.0000	\$41,367	1.0500	\$43,435	1.1550	\$47,779	1.2300	\$50,881	1.2750	\$52,743
1	1.0300	\$42,608	1.0825	\$44,780	1.2000	\$49,640	1.2750	\$52,743	1.3200	\$54,604
2	1.0600	\$43,849	1.1150	\$46,124	1.2450	\$51,502	1.3200	\$54,604	1.3650	\$56,466
3	1.0906	\$45,114	1.1475	\$47,469	1.2900	\$53,363	1.3650	\$56,466	1.4100	\$58,327
4	1.1396	\$47,143	1.1868	\$49,095	1.3350	\$55,225	1.4100	\$58,327	1.4550	\$60,189
5	1.1887	\$49,172	1.2359	\$51,125	1.3800	\$57,086	1.4550	\$60,189	1.5000	\$62,050
6	1.2377	\$51,201	1.2849	\$53,154	1.4250	\$58,948	1.5000	\$62,050	1.5450	\$63,912
7	1.2868	\$53,232	1.3340	\$55,183	1.4700	\$60,809	1.5450	\$63,912	1.5900	\$65,773
8	1.3359	\$55,261	1.3831	\$57,213	1.5150	\$62,671	1.5900	\$65,773	1.6350	\$67,635
9	1.3850	\$57,291	1.4321	\$59,242	1.5600	\$64,532	1.6350	\$67,635	1.6800	\$69,496
10	1.4369	\$59,438	1.4840	\$61,389	1.6050	\$66,395	1.6800	\$69,496	1.7250	\$71,358
11	1.4887	\$61,581	1.5359	\$63,536	1.6567	\$68,531	1.7250	\$71,358	1.7700	\$73,219
12	1.5406	\$63,729	1.5878	\$65,683	1.7133	\$70,872	1.7700	\$73,219	1.8150	\$75,081
13	1.5925	\$65,876	1.6397	\$67,830	1.7699	\$73,214	1.8170	\$75,164	1.8680	\$77,273
14	1.6444	\$68,023	1.6916	\$69,977	1.8265	\$75,555	1.8736	\$77,505	1.9246	\$79,615
15	1.6601	\$68,672	1.7250	\$71,359	1.8831	\$77,896	1.9302	\$79,847	1.9812	\$81,956
16	1.6801	\$69,500	1.7400	\$71,979	1.9147	\$79,204	1.9650	\$81,286	2.0100	\$83,147
17	1.7001	\$70,327	1.7550	\$72,600	1.9347	\$80,031	1.9800	\$81,907	2.0250	\$83,768
18	1.7201	\$71,154	1.7700	\$73,220	1.9547	\$80,858	1.9950	\$82,527	2.0400	\$84,388
19	1.7401	\$71,982	1.7850	\$73,841	1.9747	\$81,686	2.0100	\$83,148	2.0550	\$85,009
20	1.7551	\$72,602	1.8000	\$74,461	1.9897	\$82,306	2.0250	\$83,768	2.0700	\$85,629
21	1.7701	\$73,223	1.8150	\$75,082	2.0047	\$82,927	2.0400	\$84,389	2.0850	\$86,250
22	1.7851	\$73,843	1.8300	\$75,702	2.0197	\$83,547	2.0550	\$85,009	2.1000	\$86,870
23	1.8001	\$74,464	1.8450	\$76,323	2.0347	\$84,168	2.0750	\$85,837	2.1200	\$87,698
24	1.8151	\$75,084	1.8600	\$76,943	2.0497	\$84,788	2.0950	\$86,664	2.1400	\$88,525
25	1.8301	\$75,705	1.8750	\$77,564	2.0647	\$85,409	2.1150	\$87,491	2.1600	\$89,353
27	1.8451	\$76,325	1.8900	\$78,184	2.0797	\$86,029	2.1350	\$88,319	2.1800	\$90,180
30	1.8601	\$76,946	1.9050	\$78,805	2.0947	\$86,650	2.1550	\$89,146	2.2000	\$91,007

Contracted Base Salary: **\$41,367** **3.00% + \$1,000 one-time ESSER Stipend** Contracted Hourly Rate for Teachers: **\$29.81**

1. Experience as a teacher shall be evaluated at the time the employee is placed in a classification.
2. Experience for fractional parts of a year will not be granted.
3. Employees shall advance one step on the salary schedule for satisfactory service.
4. Teaching positions who have additional education confirmed MAY be entitled to a salary increase after an official transcript is received by HR.
5. Out of state experience may be granted with a potential minimum of 5 years actual teaching experience and a maximum of 10 years of service. *This is the discretion of the Superintendent/Designee. (ORC 3317.14)*
6. Newly hired teachers will be placed on the current salary schedule based on years of teaching experience.
* It is the discretion of the Superintendent/Designee for final placement on the salary schedule.

Teacher Salary Schedule
2022-2023 School Year



185 Contracted Work Days

Step	Bachelor's Degree		Bachelor's Degree Plus 20 Sem. Hrs.		Master's Degree		Master's Degree Plus 20 Sem. Hrs.		Master's Degree Plus 30 Sem. Hrs.	
	Index	Salary	Index	Salary	Index	Salary	Index	Salary	Index	Salary
0	1.0000	\$42,194	1.0500	\$44,304	1.1550	\$48,734	1.2300	\$51,899	1.2750	\$53,798
1	1.0300	\$43,460	1.0825	\$45,675	1.2000	\$50,633	1.2750	\$53,798	1.3200	\$55,696
2	1.0600	\$44,726	1.1150	\$47,047	1.2450	\$52,532	1.3200	\$55,696	1.3650	\$57,595
3	1.0906	\$46,016	1.1475	\$48,418	1.2900	\$54,431	1.3650	\$57,595	1.4100	\$59,494
4	1.1396	\$48,086	1.1868	\$50,077	1.3350	\$56,329	1.4100	\$59,494	1.4550	\$61,393
5	1.1887	\$50,155	1.2359	\$52,147	1.3800	\$58,228	1.4550	\$61,393	1.5000	\$63,291
6	1.2377	\$52,225	1.2849	\$54,217	1.4250	\$60,127	1.5000	\$63,291	1.5450	\$65,190
7	1.2868	\$54,297	1.3340	\$56,287	1.4700	\$62,026	1.5450	\$65,190	1.5900	\$67,089
8	1.3359	\$56,366	1.3831	\$58,357	1.5150	\$63,924	1.5900	\$67,089	1.6350	\$68,988
9	1.3850	\$58,437	1.4321	\$60,427	1.5600	\$65,823	1.6350	\$68,988	1.6800	\$70,886
10	1.4369	\$60,627	1.4840	\$62,617	1.6050	\$67,723	1.6800	\$70,886	1.7250	\$72,785
11	1.4887	\$62,812	1.5359	\$64,807	1.6567	\$69,902	1.7250	\$72,785	1.7700	\$74,684
12	1.5406	\$65,004	1.5878	\$66,997	1.7133	\$72,290	1.7700	\$74,684	1.8150	\$76,583
13	1.5925	\$67,193	1.6397	\$69,187	1.7699	\$74,678	1.8170	\$76,667	1.8680	\$78,819
14	1.6444	\$69,383	1.6916	\$71,377	1.8265	\$77,066	1.8736	\$79,056	1.9246	\$81,207
15	1.6601	\$70,046	1.7250	\$72,786	1.8831	\$79,454	1.9302	\$81,444	1.9812	\$83,595
16	1.6801	\$70,890	1.7400	\$73,419	1.9147	\$80,788	1.9650	\$82,912	2.0100	\$84,810
17	1.7001	\$71,734	1.7550	\$74,052	1.9347	\$81,632	1.9800	\$83,545	2.0250	\$85,443
18	1.7201	\$72,577	1.7700	\$74,685	1.9547	\$82,475	1.9950	\$84,178	2.0400	\$86,076
19	1.7401	\$73,421	1.7850	\$75,318	1.9747	\$83,319	2.0100	\$84,811	2.0550	\$86,709
20	1.7551	\$74,054	1.8000	\$75,950	1.9897	\$83,952	2.0250	\$85,444	2.0700	\$87,342
21	1.7701	\$74,687	1.8150	\$76,583	2.0047	\$84,585	2.0400	\$86,077	2.0850	\$87,975
22	1.7851	\$75,320	1.8300	\$77,216	2.0197	\$85,218	2.0550	\$86,710	2.1000	\$88,608
23	1.8001	\$75,953	1.8450	\$77,849	2.0347	\$85,851	2.0750	\$87,553	2.1200	\$89,452
24	1.8151	\$76,586	1.8600	\$78,482	2.0497	\$86,484	2.0950	\$88,397	2.1400	\$90,296
25	1.8301	\$77,219	1.8750	\$79,115	2.0647	\$87,117	2.1150	\$89,241	2.1600	\$91,140
27	1.8451	\$77,852	1.8900	\$79,748	2.0797	\$87,750	2.1350	\$90,085	2.1800	\$91,983
30	1.8601	\$78,485	1.9050	\$80,381	2.0947	\$88,383	2.1550	\$90,929	2.2000	\$92,827

Contracted Base Salary: \$42,194 2.00% + 1.00% one-time ESSER Stipend Contracted Hourly Rate for Teachers: \$30.41

1. Experience as a teacher shall be evaluated at the time the employee is placed in a classification.
2. Experience for fractional parts of a year will not be granted.
3. Employees shall advance one step on the salary schedule for satisfactory service.
4. Teaching positions who have additional education confirmed MAY be entitled to a salary increase after an official transcript is received by HR.
5. Out of state experience may be granted with a potential minimum of 5 years actual teaching experience and a maximum of 10 years of service. *This is the discretion of the Superintendent/Designee. (ORC 3317.14)*
6. Newly hired teachers will be placed on the current salary schedule based on years of teaching experience.

* It is the discretion of the Superintendent/Designee for final placement on the salary schedule.

APPENDIX B

Tutor Salary Schedules

Beginning 2020-21 Through 2022-2023

180 Work Days/Contract



Tutors & Reading Specialists

BOE Approved: 12/7/2021

***FY21**

Contract Grouping, Tutor \$ 32,231

Contract Category, Non-Exempt Certified

Title I Specialist (Tutor) Full Time 2020-2021 School Year Base Salary \$32,321		
Step	Index	Salary
0	1.000	\$ 32,231
1	1.052	\$ 33,907
2	1.104	\$ 35,583
3	1.156	\$ 37,259
4	1.208	\$ 38,935
5	1.260	\$ 40,611
6	1.312	\$ 42,287
7	1.364	\$ 43,963
8	1.416	\$ 45,639
9	1.468	\$ 47,315
10	1.523	\$ 49,088
11	1.578	\$ 50,861
12	1.633	\$ 52,633
13	1.688	\$ 54,406
14	1.743	\$ 56,179
25	1.798	\$ 57,952
30	1.853	\$ 59,724
1. Title I Reading Specialist (Title I) 2. ELL Tutors (Title I) 3. Math Tutors (Title I) 4. Reading, Math, and Technology (Title I) 5. AIM Tutor		

*FT Tutors Receive an additional \$1000
in FY21 while PT receive \$500.

FY22

Contract Grouping, Tutor \$ 33,682

Contract Category, Non-Exempt Certified

Title I Specialist (Tutor) Full Time 2021-2022 School Year Base Salary \$33,682		
Step	Index	Salary
0	1.000	\$ 33,682
1	1.052	\$ 35,433
2	1.104	\$ 37,184
3	1.156	\$ 38,936
4	1.208	\$ 40,687
5	1.260	\$ 42,439
6	1.312	\$ 44,190
7	1.364	\$ 45,942
8	1.416	\$ 47,693
9	1.468	\$ 49,445
10	1.523	\$ 51,297
11	1.578	\$ 53,150
12	1.633	\$ 55,002
13	1.688	\$ 56,854
14	1.743	\$ 58,707
25	1.798	\$ 60,559
30	1.853	\$ 62,412
1. Title I Reading Specialist (Title I) 2. ELL Tutors (Title I) 3. Math Tutors (Title I) 4. Reading, Math, and Technology (Title I) 5. AIM Tutor		

4.50% + \$1000 one-time ESSER Stipend

FY23

Contract Grouping, Tutor \$ 34,355

Contract Category, Non-Exempt Certified

Title I Specialist (Tutor) Full Time 2022-2023 School Year Base Salary \$34,355		
Step	Index	Salary
0	1.000	\$ 34,355
1	1.052	\$ 36,142
2	1.104	\$ 37,928
3	1.156	\$ 39,715
4	1.208	\$ 41,501
5	1.260	\$ 43,288
6	1.312	\$ 45,074
7	1.364	\$ 46,860
8	1.416	\$ 48,647
9	1.468	\$ 50,433
10	1.523	\$ 52,323
11	1.578	\$ 54,212
12	1.633	\$ 56,102
13	1.688	\$ 57,992
14	1.743	\$ 59,881
25	1.798	\$ 61,771
30	1.853	\$ 63,660
1. Title I Reading Specialist (Title I) 2. ELL Tutors (Title I) 3. Math Tutors (Title I) 4. Reading, Math, and Technology (Title I) 5. AIM Tutor		

2.0% + 1.00% one-time ESSER Stipend

APPENDIX C

Supplemental Contract Categories and Payment Dates

Supplemental Payment Dates



Beginning 2021-2022

Annual Athletic Supplementals		
Position	Pay Date I	Pay Date II
Weight R. & Conditioning	Sept.	June
Athletic Trainer	Sept.	June
Faculty Manager	Sept.	June
Middle School Athletic Dir.	Sept.	June

Category I		
Position	Pay Date I	Pay Date II
Head Football Coach	Sept.	Dec.
Head Basketball Coach	Dec.	April
Marching Band	Sept.	Dec.

Category II		
Position	Pay Date I	Pay Date II
Vocal Music & Show Choir	Dec.	June
Football Assistants	Sept.	Dec.
Basketball Assistants	Dec.	April
Marching Band Asst.	Sept.	Dec.
Head Wrestling	Dec.	April
Head Track	April	June
Head Soccer	Sept.	Dec.
Head Baseball or Softball	April	June

Category III		
Position	Pay Date I	Pay Date II
Yearbook	X	June
Head Swimming/Diving Coach	Dec.	April
Baseball or Softball Asst.	April	June
Stage Manager	Dec.	April
Head Football 7 & 8	Sept.	Dec.
Head Basketball 7 & 8	Dec.	April
Track Asst.	April	June
Soccer Asst.	Sept.	Dec.
Head Volleyball (Girls)	Sept.	Dec.
Head Volleyball (Boys)	April	June
Field Rehearsal/Brass Asst.	Sept.	Dec.

Category IV		
Position	Pay Date I	Pay Date II
Wrestling Asst.	Dec.	April
Head Golf	Sept.	Dec.
Head Tennis (Girls)	Sept.	Dec.
Head Tennis (Boys)	April	June
Head Cross Country	Sept.	Dec.
Head Bowling (Girls)	Dec.	April
Head Bowling (Boys)	Dec.	April
Auxiliary Band Coordinator	Sept.	Dec.
Middle S. Head Wrestling	Dec.	April
*Middle S. Head Baseball	April	June
*Middle S. Head Softball	April	June

Supplemental Payment Dates		
Fall	September	December
Winter	December	April
Spring	April	June
Annual	September	June

Category V		
Position	Pay Date I	Pay Date II
Major Play Director		Dec. or after given
Musical Director		June or after given
Aux. Band Asst.	Sept.	Dec.
Pep Band	Dec.	April
Jazz Band	Dec.	April
Football Asst. 7 & 8	Sept.	Dec.
Basketball Asst. 7 & 8	Dec.	April
Newspaper	X	June
Golf Asst.	Sept.	Dec.
Tennis Asst. (Girls)	Sept.	Dec.
Tennis Asst. (Boys)	April	June
Cross Country Asst.	Sept.	Dec.
Volleyball Asst (Girls)	Sept.	Dec.
Volleyball Asst. (Boys)	April	June
Middle S. Head Track	X	June
Orchestra Director	X	June
Bowling Asst.	Dec.	April
Fall Cheerleading Advisor	Sept.	Dec.
Winter Cheerleading Advisor	Dec.	June
Dance Coach	Sept.	June

Category VI		
Position	Pay Date I	Pay Date II
Debate	X	April
Middle S. Track Asst.	X	June
Forensics	Sept.	June
Thespians	Sept.	June
Vocal Director (Musical)	X	June or after given
Technical Director (Musical)	X	June or after given
Technical Director (Play)	X	Dec. or after given
Middle School Vocal *	X	June
Middle School Cheerleading	Dec.	April
Class Advisor	X	June
Orchestra Director- Musical	X	June or after given
Audio- Visual Aide	X	June
Middle S. Volleyball	X	Dec.
Middle S. Cross Country	X	Dec.
Fall Asst. Cheerleading Adv.	Sept.	Dec.
Winter Asst. Cheerleading Adv.	Dec.	June

Category VII		
Position	Pay Date I	Pay Date II
Orchestra Asst.	X	June
Concert Band	X	June
Middle S. Volleyball Asst.	X	Dec.
Middle S. Jazz Band	X	June
Middle S. Cross Country Asst.	X	Dec.
E-Sport Head Coach	September	June
E-Sport Asst. Coach	September	Dec.

Supplementals will be paid when:

1. Performances/seasons are completed
2. Inventory has been collected
3. Job duties are completed
4. Supervisor notifies payroll

Revision: 11/23/21

Supplemental Payment Dates



Beginning 2021-2022

Annual Athletic Supplementals		
Position	Pay Date I	Pay Date II
Weight R. & Conditioning	Sept.	June
Athletic Trainer	Sept.	June
Faculty Manager	Sept.	June
Middle School Athletic Dir.	Sept.	June

Category I		
Position	Pay Date I	Pay Date II
Head Football Coach	Sept.	Dec.
Head Basketball Coach	Dec.	April
Marching Band	Sept.	Dec.

Category II		
Position	Pay Date I	Pay Date II
Vocal Music & Show Choir	Dec.	June
Football Assistants	Sept.	Dec.
Basketball Assistants	Dec.	April
Marching Band Asst.	Sept.	Dec.
Head Wrestling	Dec.	April
Head Track	April	June
Head Soccer	Sept.	Dec.
Head Baseball or Softball	April	June

Category III		
Position	Pay Date I	Pay Date II
Yearbook	X	June
Head Swimming/Diving Coach	Dec.	April
Baseball or Softball Asst.	April	June
Stage Manager	Dec.	April
Head Football 7 & 8	Sept.	Dec.
Head Basketball 7 & 8	Dec.	April
Track Asst.	April	June
Soccer Asst.	Sept.	Dec.
Head Volleyball (Girls)	Sept.	Dec.
Head Volleyball (Boys)	April	June
Field Rehearsal/Brass Asst.	Sept.	Dec.

Category IV		
Position	Pay Date I	Pay Date II
Wrestling Asst.	Dec.	April
Head Golf	Sept.	Dec.
Head Tennis (Girls)	Sept.	Dec.
Head Tennis (Boys)	April	June
Head Cross Country	Sept.	Dec.
Head Bowling (Girls)	Dec.	April
Head Bowling (Boys)	Dec.	April
Auxiliary Band Coordinator	Sept.	Dec.
Middle S. Head Wrestling	Dec.	April
*Middle S. Head Baseball	April	June
*Middle S. Head Softball	April	June

Supplemental Payment Dates		
Fall	September	December
Winter	December	April
Spring	April	June
Annual	September	June

Category V		
Position	Pay Date I	Pay Date II
Major Play Director		Dec. or after given
Musical Director		June or after given
Aux. Band Asst.	Sept.	Dec.
Pep Band	Dec.	April
Jazz Band	Dec.	April
Football Asst. 7 & 8	Sept.	Dec.
Basketball Asst. 7 & 8	Dec.	April
Newspaper	X	June
Golf Asst.	Sept.	Dec.
Tennis Asst. (Girls)	Sept.	Dec.
Tennis Asst. (Boys)	April	June
Cross Country Asst.	Sept.	Dec.
Volleyball Asst. (Girls)	Sept.	Dec.
Volleyball Asst. (Boys)	April	June
Middle S. Head Track	X	June
Orchestra Director	X	June
Bowling Asst.	Dec.	April
Fall Cheerleading Advisor	Sept.	Dec.
Winter Cheerleading Advisor	Dec.	June
Dance Coach	Sept.	June

Category VI		
Position	Pay Date I	Pay Date II
Debate	X	April
Middle S. Track Asst.	X	June
Forensics	Sept.	June
Thespians	Sept.	June
Vocal Director (Musical)	X	June or after given
Technical Director (Musical)	X	June or after given
Technical Director (Play)	X	Dec. or after given
Middle School Vocal *	X	June
Middle School Cheerleading	Dec.	April
Class Advisor	X	June
Orchestra Director- Musical	X	June or after given
Audio- Visual Aide	X	June
Middle S. Volleyball	X	Dec.
Middle S. Cross Country	X	Dec.
Fall Asst. Cheerleading Adv.	Sept.	Dec.
Winter Asst. Cheerleading Adv.	Dec.	June

Category VII		
Position	Pay Date I	Pay Date II
Orchestra Asst.	X	June
Concert Band	X	June
Middle S. Volleyball Asst.	X	Dec.
Middle S. Jazz Band	X	June
Middle S. Cross Country Asst.	X	Dec.
E-Sport Head Coach	September	June
E-Sport Asst. Coach	September	Dec.

Supplementals will be paid when:

1. Performances/seasons are completed
2. Inventory has been collected
3. Job duties are completed
4. Supervisor notifies payroll

Revision: 11/23/21

Supplemental Pay
Salary Schedules



Beginning 2020-2021
through 2022-2023

2020-2021 School Year

6.0% Increase for 2020-2021 School Year

EXP.	Cat.	I	II	III	IV	V	VI	VII						
0	0.160	\$6,426	0.090	\$3,615	0.070	\$2,811	0.050	\$2,008	0.040	\$1,606	0.030	\$1,205	0.020	\$803
1	0.170	\$6,828	0.100	\$4,016	0.080	\$3,213	0.060	\$2,410	0.050	\$2,008	0.040	\$1,606	0.030	\$1,205
2	0.180	\$7,229	0.110	\$4,418	0.090	\$3,615	0.070	\$2,811	0.060	\$2,410	0.050	\$2,008	0.040	\$1,606
3	0.190	\$7,631	0.120	\$4,819	0.100	\$4,016	0.080	\$3,213	0.070	\$2,811	0.060	\$2,410	0.050	\$2,008
4	0.200	\$8,032	0.130	\$5,221	0.110	\$4,418	0.090	\$3,615	0.080	\$3,213	0.070	\$2,811	0.060	\$2,410

*Base Suppl Salary FY21 \$40,162

2021-2022 School Year

EXP.	Cat.	I	II	III	IV	V	VI	VII						
0	0.160	\$6,619	0.090	\$3,723	0.070	\$2,896	0.050	\$2,068	0.040	\$1,655	0.030	\$1,241	0.020	\$827
1	0.170	\$7,032	0.100	\$4,137	0.080	\$3,309	0.060	\$2,482	0.050	\$2,068	0.040	\$1,655	0.030	\$1,241
2	0.180	\$7,446	0.110	\$4,550	0.090	\$3,723	0.070	\$2,896	0.060	\$2,482	0.050	\$2,068	0.040	\$1,655
3	0.190	\$7,860	0.120	\$4,964	0.100	\$4,137	0.080	\$3,309	0.070	\$2,896	0.060	\$2,482	0.050	\$2,068
4	0.200	\$8,273	0.130	\$5,378	0.110	\$4,550	0.090	\$3,723	0.080	\$3,309	0.070	\$2,896	0.060	\$2,482

*Base Suppl Salary FY22 \$41,367

2022-2023 School Year

EXP.	Cat.	I	II	III	IV	V	VI	VII						
0	0.160	\$6,751	0.090	\$3,797	0.070	\$2,954	0.050	\$2,110	0.040	\$1,688	0.030	\$1,266	0.020	\$844
1	0.170	\$7,173	0.100	\$4,219	0.080	\$3,376	0.060	\$2,532	0.050	\$2,110	0.040	\$1,688	0.030	\$1,266
2	0.180	\$7,595	0.110	\$4,641	0.090	\$3,797	0.070	\$2,954	0.060	\$2,532	0.050	\$2,110	0.040	\$1,688
3	0.190	\$8,017	0.120	\$5,063	0.100	\$4,219	0.080	\$3,376	0.070	\$2,954	0.060	\$2,532	0.050	\$2,110
4	0.200	\$8,439	0.130	\$5,485	0.110	\$4,641	0.090	\$3,797	0.080	\$3,376	0.070	\$2,954	0.060	\$2,532

*Base Suppl Salary FY23 \$42,194

Method of Computation

All indexed positions will be computed by multiplying the index value for each position times the current base salary.

* Position listings herein do not guarantee or require that such positions will be filled each year by the Employer.

** Amounts represented herein do not preclude issuance of an extended time contract, in addition to the supplemental contract.

Single Step Supplemental Pay Salary Schedule

**Single Step
Supplemental Pay
Salary Schedule**



**Beginning 2020-2021
through 2022-2023**

Position	Annual Increase		6.00%	3.00%	2.00%
	Pay Date I	Pay Date II	2020-2021	2021-2022	2022-2023
Weightroom and Conditioning	Sept.	June	\$16,100	\$16,583	\$16,915
Assistant Athletic Director	Sept.	June	\$13,765	\$14,178	\$14,462
Video Board Coordinator	Sept.	June	\$2,785	\$2,868	\$2,926
Lighting Coordinator	Sept.	June	\$2,785	\$2,868	\$2,926
Special Olympics	X	June	\$1,809	\$1,864	\$1,901
Student Gov (MHS)	Sept.	June	\$2,012	\$2,072	\$2,114
Middle School Stage Manager	X	June	\$2,012	\$2,072	\$2,114
Site Manager - Fall	Sept.	Dec.	\$1,720	\$1,772	\$1,807
Site Manager - Winter	Dec.	April	\$1,720	\$1,772	\$1,807
Site Manager - Spring	April	June	\$1,720	\$1,772	\$1,807
Building Tech. Resource Person	X	June	\$1,614	\$1,663	\$1,696
Middle School Paper	X	June	\$1,411	\$1,453	\$1,482
Middle School Play/Operetta	X	June or after given	\$1,411	\$1,453	\$1,482
Academic Quiz Team (MHS)	X	June	\$1,007	\$1,037	\$1,058
Arrival/Dismal Duty (A.M./P.M.)	X	June	\$1,007	\$1,037	\$1,058
Breakfast	X	June	\$1,007	\$1,037	\$1,058
Chess Club	X	June	\$1,007	\$1,037	\$1,058
Elem. Safety Patrol	X	June	\$1,007	\$1,037	\$1,058
Hall Monitor	X	June	\$1,007	\$1,037	\$1,058
Student Gov (MMS)	X	June	\$1,007	\$1,037	\$1,058
Academic Club (MHS)	X	June	\$805	\$829	\$845
National Honor Society (MHS)	X	June	\$805	\$829	\$845
Mentor	X	June	\$725	\$747	\$762
Special Education Case Coord.	X	June	\$725	\$747	\$762
Elem./Middle School Det.					
5 days per week	X	June	\$2,412	\$2,485	\$2,534
4 days per week	X	June	\$2,012	\$2,072	\$2,114
3 days per week	X	June	\$1,613	\$1,661	\$1,694
2 days per week	X	June	\$1,209	\$1,245	\$1,270
1 days per week	X	June	\$804	\$828	\$845

Payment Date(s)		
Fall	Sept.	Dec.
Winter	Dec.	April
Spring	April	June
Annual	Sept.	June

Supplementals will be paid when:
 * Performances/seasons are completed.
 * Inventory was collected.
 * Job duties were completed.
 * Supervisors need to notify payroll of satisfactory completion for payment

APPENDIX D

Memorandum of Understanding **The Ohio Teacher Evaluation System** **Pilot Year 2019-2020**

This Memorandum of Understanding is entered into by and between the Middletown Board of Education (Board) and the Middletown Teachers Association (Association) this _____ day of October, 2019.

WHEREAS, the Board and Association have entered into a Collective Bargaining Agreement (CBA) which is effective from July 1, 2017 through June 30, 2020;

WHEREAS, the parties have entered into certain agreements with regard to participation in the Ohio Teacher Evaluation System (OTES) Pilot for the 2019-2020 year that affects the Association and, in that regard, desire to memorialize their agreements pertaining to same;

WHEREAS, the parties intend to amend their current CBA and Board Policy as set forth hereinafter, and further intend that all remaining sections of the CBA and Board Policy that are not inconsistent herewith, shall remain in full force and effect;

NOW THEREFORE, IT IS HEREBY AGREED by and between the Board and the Association that the following language shall constitute their Agreement as it relates to this matter.

Teacher Evaluation Guidelines

I. Philosophy of Evaluation

Evaluation of teaching is a continuous constructive process for the improvement of the quality of instruction.

Evaluation is cooperative in nature. It provides a basis for self-evaluation and professional growth for the teacher.

The evaluation process provides a means whereby teacher competency and performance are carefully, fairly and systematically assessed, aids in making sound administrative decisions affecting the teacher, and provides a permanent record of teacher performance.

II. Frequency of Evaluation

- A. Every teacher shall be evaluated every year, except that the frequency and scope of evaluations may be reduced according to law. Accomplished and Skilled teachers must

show growth on their professional growth plan in order to remain on a reduced evaluation frequency.

- B. No teacher shall receive more than one summative evaluation annually.
- C. The evaluation shall be conducted and completed no later than the first day of May and the teacher being evaluated shall receive a written report of the results of this evaluation not later than the tenth day of May.
- D. If the Board has entered into a limited contract or extended limited contract with the teacher, the Board shall perform a minimum of three formal observations during the evaluation cycle in any school year in which the Board may wish to declare its intention not to reemploy the teacher.

III. Procedures for Evaluation

A. Evaluation Procedure Defined

- 1. The evaluation procedure established in this Appendix conforms to the framework for the evaluation of teachers developed pursuant to section 3319.112 of the Ohio Revised Code.
- 2. Each completed evaluation will result in the assignment of a teacher effectiveness rating. The teacher effectiveness rating shall be derived from a summative evaluation as derived from the OTES 2.0 Pilot Rubric. If the law changes regarding areas addressed by this Section (A)(2), the law will prevail.

B. Application:

- 1. The teacher evaluation procedure contained in this agreement applies to the following employees of the District:
 - a. Teachers working under a license issued under sections 3319.22, 3319.26, 3319.222 or 3319.226 of the Revised Code who spend at least fifty (50) percent of their time providing content-related student instruction.
 - b. Teachers working under a permanent certificate issued under section 3319.222 of the Revised Code as it existed prior to September 2003 who spend at least fifty (50) percent of their time providing content-related student instruction,

- c. Teachers working under a permanent certificate issued under section 3319.222 of the Revised Code as it existed prior to September 2006 who spend at least fifty (50) percent of their time providing content-related student instruction.
 - d. Teachers working under a permit issued under 3319.301 of the Revised Code who spend at least fifty (50) percent of their time providing content-related student instruction.
2. The observations and evaluation of a teacher who is a Resident Educator will be consistent and coordinated with the requirements of the Resident Educator Program. If the Resident Educator Program is discontinued by the state, it shall be discontinued by the District also.

C. Evaluation Instrument

1. The Evaluation Instrument shall be the process and forms used by the teacher's evaluator. OTES 2.0 forms will be used.

D. Evaluators

1. All evaluators will be properly licensed and credentialed by the State of Ohio.
2. Evaluators will be building principals, building assistant principals, and immediate supervisors, such as the Related Services Coordinators and the Gifted Coordinator. As mutually agreed by the MTA and the Human Resources Director, the evaluator may be other District administrators. This Section is not intended to prevent administrators from monitoring classrooms monitoring program and technology implementation, monitoring program protocols, etc.
3. Teachers who are assigned to two or more buildings will be informed early in the school year as to who will be evaluating him or her.

E. High Quality Student Data

Per ORC 3319.111 two measures of high quality student data (HQSD) must be used in the framework of teacher evaluation. HQSD must be attributable to the teacher, include Value Added when applicable and one other measure of HQSD.

Teacher Value Added, if available, must be used, ODE approved vendor assessments, and district determined instruments are all considered sources of HQSD.

F. Professional Growth Plans – Prior to November 1, the teacher will be informed of the assigned evaluator and will meet with the evaluator at a goal setting conference to develop/ review the professional growth plan (PGP) for that year. This conference may occur during prior year’s summative evaluation conference. Each professional growth plan shall have 1 teacher professional SMART goal.

1. Teachers with an earned rating of Accomplished will complete a self-directed PGP. Teachers with an earned rating of Skilled will work with their evaluator to jointly complete the PGP. Teachers with an earned rating of Developing will complete a PGP that is guided by their evaluator.
2. Teachers who have received a performance rating of “Ineffective,” will be placed on an improvement plan directed by the assigned evaluator.
3. Improvement plans will contain all of the elements noted on the OTES 2.0 form. Improvement plans will contain reasonable time lines for completion, and achievable goals.
4. The Association may provide supports to teachers who receive “developing” or “ineffective” performance ratings. Supports must be pre-approved by the building principal and shall be aligned to District goals and initiatives.
5. The evaluation process shall be conducted and completed no later than May 1 and the teacher being evaluated shall receive a written report of the results of this evaluation not later than May 10.

G. Observations

1. Formal observations shall be defined as an observation of a minimum of thirty (30) minutes that results in completion of a written observation form and is preceded by a pre-conference and followed by a post conference. A minimum of two (2) observations will be made for all teachers being evaluated. A minimum of three (3) observations will be made for teachers who may be subject to non-renewal. The first formal observation will be a holistic assessment. The second formal observation will be a focused assessment. The focus areas for the second observation shall be shared with the teacher at the first post observation conference. If necessary, if the third observation is a focused assessment that will be shared with the teacher at the second post observation conference.
2. All formal observations will be conducted openly and with the full knowledge of the teacher and shall be aligned with the pre-conference.

3. A pre-observation conference shall be held prior to each formal observation between the evaluator and the teacher in order for the teacher and evaluator to engage in discussions regarding the teacher's instructional planning. The evaluator may offer and the teacher may request a copy of the observation rubric at this meeting.
4. A post-observation conference shall be held between the evaluator and the teacher. The post observation report rubric will provide evidence of teacher performance. At this conference, the teacher may provide evidence not indicated by the evaluator that aligns with the observation rubric. The post-observation conference shall be held within ten (10) working days following the observation.
5. Formal observations shall not be scheduled and conducted during the first week of school or on the day before or the day after a school holiday or vacation.
6. Informal Visits: The evaluation process begins the first day of the work year and includes all aspects of the teacher's performance. Informal visits may take place at any time and are intended to allow for an "all inclusive" picture of the teacher's professional work life.

H. Summative Evaluation Report

1. All formal observations and evaluation report(s) will be signed or electronically acknowledged by the evaluator and the staff member. The staff member's signature or electronic acknowledgment does not signify agreement with the contents of the evaluation report(s), only that he/she has seen and read the evaluation report(s). The staff member will have the opportunity to make a written response and have it attached to the formal observation or evaluation report.
2. All evaluation documents will be accessible to the staff member via the electronic evaluation management system. All formal observations and evaluation reports shall be placed in the teacher's personnel file.
3. The final summative evaluation report and conference will occur by May 10. At which time, the teacher's final evaluation rating will be reviewed and areas of focus will be identified for the following year.

I. OTES Walk-Throughs

1. An OTES walk-through is an informal observation that provides an opportunity to gather evidence and provide feedback to teachers. All walk-throughs will be conducted openly and with the full knowledge of the teacher by assigned evaluator.

2. An OTES walk-through will be between five (5) minutes and fifteen (15) minutes in length.
 3. Members shall be provided with feedback regarding OTES required walk-throughs. The evaluator will endeavor to provide this feedback within forty-eight (48) hours of the walk-through. Members may respond in writing to a walk-through, and such response will be attached to the walk-through documentation.
 4. In years when the member is not subject to the formal evaluation, he/she will be subject to an informal observation/walkthrough. The evaluator shall conduct one (1) informal observation/walkthrough around thirty (30) minutes in length. The informal observation electronic forms shall be provided to the member within five (5) working days. One conference with discussion of progress on the Professional Growth Plan will be held. Principals reserve the right to visit and informally walk through classrooms as the Principal deems necessary.
- J. A teacher who disagrees with an ineffective rating on his/her final evaluation is permitted to write a rebuttal letter that will be included in his/her file, but may not grieve the evaluation except for clear factual mistakes or procedural violations.
- K. The Association may make written recommendations to the District regarding the efficiency and effectiveness of evaluations. After submission of the recommendations, the Association may request a meeting to discuss the recommendations. Prior to any substantive alterations to the evaluations process, the Association President shall be informed of the recommended changes and given the opportunity to provide input.

As noted in Article 14.5 (Evaluation), the parties agree to meet once the new evaluation system is implemented by law and regulations. To the extent the new framework or statutes conflict with this MOU, the parties will meet to revise and update the relevant language. In the event the transition from the current evaluation model to the new version of OTES is delayed, the terms outlined in this current MOU will be used for the length of the contract.

For the Board:

For the Association:

APPENDIX E

EMERGENCY LEAVE FUND (ELF) Policy & Eligibility



I. PURPOSE:

To provide additional days of sick leave for full time employees of the Middletown City School District who experience catastrophic personal accidental injury, non-elective surgery, or other catastrophic illness who are currently out of sick leave, vacation/non-duty, and personal leave.

For purposes of this benefit, a catastrophic condition may include, but is not limited to, a heart attack, stroke, cancer, serious complications due to surgery, and life threatening accidents. A catastrophic illness incapacitates the employee and requires continuing supervision and treatment from a healthcare provider. An employee's own medically certified "catastrophic health condition" may be considered a catastrophic injury or illness.

II. COMMITTEE MEMBERSHIP:

This fund is to be regulated by the E.L.F. Board consisting of:

- The President of the Middletown Teacher's Association, when the matter concerns MTA members.
- The President of the Middletown Certified Employees Association, when the matter concerns MCEA members.
- The Superintendent or Designee.
- The school physician. The physician may be consulted on a case by case basis.
- Additional E.L.F. Board members may be added to serve on this committee with the following conditions:
 - There will be no more than (3) three total members from the association:
 - (3) three MTA members on the E.L.F. Board if the situation pertains to an MTA member. This includes the MTA President.
 - (3) three MCEA members on the E.L.F. Board if the situation pertains to an MCEA member. This includes the MCEA President.
 - There will be no more than (3) three administrators. This includes the Superintendent or designee but does not include the school physician.

Annually, the Superintendent or designee and the Association's Presidents may select E.L.F. Board membership.

III. PROVISIONS OF ELIGIBILITY:

- A. All full time certified & classified employees shall be eligible to be members of the E.L.F.

1. Initial voluntary membership will consist of a non-refundable day of sick leave to be applied by the employee to the E.L.F. program upon time of hire. Between November 1, and December 1, future enrollment and withdrawal must be done in writing.
 2. Membership shall be continuous unless canceled during the period of November 1 through December 1, or an assessment period. All employees will receive an intent form from the Human Resources Office for the purpose of enrolling in or withdrawing from the E.L.F. At such time that the Human Resources Office has received the employee's intent form, it will be recorded and submitted to the Treasurer's Office. Each employee will receive a notice of receipt indicating their participation in the program. Employees not wishing to participate in the E.L.F. will also receive a notice of receipt indicating that they do not wish to participate.
 3. New members may join by December 1 of each year or during each assessment period.
- B. Days of E.L.F. eligibility are governed by years of service in the Middletown School District as follows:
- | | |
|----------------------------|-----------------|
| 0-5 years of service | 15 days maximum |
| 6 & above years of service | 30 days maximum |

IV. POLICY PROCEDURES:

- A. E.L.F. leave will **not** be granted until:
1. All paperwork is received. Proper paperwork needs to be turned in prior to any surgery, procedure, or therapy. In the event of an unforeseen situation, information may be submitted at the earliest possible time and days may be awarded retroactively. This will be determined at the discretion of the E.L.F. Board.
 2. The E.L.F. Board has examined all documentation from the employee's healthcare provider and determined that the employee's condition merits E.L.F. leave.
 3. The E.L.F. Board has met and rendered a final decision. The E.L.F. Board shall meet and render a decision within 10 days of receipt of request.
- B. **All decisions of the E.L.F. Board are final, binding, and not subject to grievance.**
- C. Application for emergency sick leave can only be made under the following conditions:
1. All accumulated sick and personal leave must be used first.
 2. Extended leave may be granted for catastrophic personal accidental injury, non-elective surgery, or serious illness.
 3. Verification by a physician shall be mandatory prior to any leave being granted.
 4. The application for E.L.F. days is submitted to the Director of Human Resources.
- D. Additional days may be granted above the maximum by the E.L.F. Board. A letter must

be submitted to the Human Resources Office requesting additional leave accompanied with a physician verification justifying the need for additional leave. The E.L.F. Board will meet and determine if the request is granted. The decision of the E.L.F. Board is final.

- E. In consideration of the benefits of participating in the E.L.F. each applicant for membership in the Fund shall, as a condition to such application, agree in writing as follows:

“I specifically acknowledge and agree that granting of days from the E.L.F. shall be at the sole discretion of the E.L.F. Board. All decisions of the E.L.F. Board will be final, binding and not subject to grievance. I further agree to abide by such decision and indemnify and hold harmless the Middletown City School District, Middletown Teachers Association, Middletown Classified Employees Association, the E.L.F. Board, and all of their agents for any loss they may sustain as a result of any claim or legal proceedings I may bring against any of them with respect to a decision made by any of them concerning this application.”

- F. Unused requested days shall be returned to the E.L.F.
- G. The E.L.F. will begin with one non-refundable day from each contributing staff member. When the fund is depleted below 150 days, each member will be assessed one additional non-refundable day. The E.L.F. Board shall be responsible for notifying certificated personnel of each assessment period.
- H. When an employee donates days to the Fund, he/she agrees to the above stated rules for administration of the Fund and agrees to abide by the stated rules.